

Digging for Gold: Adventures in California

R. M. Ballantyne

Project Gutenberg

Digging for Gold: Adventures in California

R. M. Ballantyne

Project Gutenberg

The Project Gutenberg eBook of Digging for Gold: Adventures in California

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Digging for Gold: Adventures in California

Author: R. M. Ballantyne

Release date: June 7, 2007 [eBook #21727]

Language: English

Other information and formats: www.gutenberg.org/ebooks/21727

Credits: Produced by Nick Hodson of London, England

*** START OF THE PROJECT GUTENBERG EBOOK DIGGING
FOR GOLD: ADVENTURES IN CALIFORNIA ***

R.M. Ballantyne

"Digging for Gold"

Chapter One.

Adventures in California.

Begins with Differences of Opinion.

If ever there was a man in this world who was passionately fond of painting and cut out for a painter, that man was Frank Allfrey; but fate, in the form of an old uncle, had decided that Frank should not follow the bent of his inclinations.

We introduce our hero to the reader at the interesting age of eighteen, but, long before that period of life, he had shown the powerful leaning of his spirit. All his school-books were covered with heads of dogs, horses, and portraits of his companions. Most of his story-books were illustrated with coloured engravings, the colouring of which had been the work of his busy hand, and the walls of his nursery were decorated with cartoons, done in charcoal, which partial friends of the family sometimes declared were worthy of Raphael.

At the age of thirteen, his uncle—for the poor fellow was an orphan—asked him one day what he would like to be. This was an extraordinary condescension on the part of Mr Allfrey, senior, who was a grim, hard-featured man, with little or no soul to speak of, and with an enormously large ill-favoured body. The boy, although taken by surprise—for his uncle seldom addressed him on any subject,—answered promptly, "I'd like to be an artist, sir."

"A what?"

"An artist."

“Get along, you goose!”

This was all that was said at the time, and as it is the only conversation which is certainly known to have taken place between the uncle and nephew during the early youth of the latter, we have ventured, at the risk of being tedious, to give the whole of it.

Frank was one of those unfortunates who are styled “neglected boys.” He was naturally sharp-witted, active in mind and body, good-tempered, and well disposed, but disinclined to study, and fond of physical exertion. He might have been a great man had he been looked after in youth, but no one looked after him. He was an infant when his father and mother died and left him to the care of his uncle, who cared not for him but left him to care for himself, having, as he conceived, done his duty towards him when he had supplied him with food, clothing, and lodging, and paid his school fees. No blame, therefore, to poor Frank that he grew up a half-educated youth, without fixed habits of study or thought, and with little capacity for close or prolonged mental exertion.

Mr Allfrey entertained the ridiculous idea that there were only three grand objects of ambition in life, namely, to work, to eat and drink, and to sleep. At least, if he did not say in definite terms that such was his belief, he undoubtedly acted as though it were. His mind appeared to revolve in a sort of small circle. He worked in order that he might eat and drink; he ate and drank that he might be strengthened for work, and he slept in order to recruit his energies that he might be enabled to work for the purposes of eating and drinking. He was a species of self-blinded human-horse that walked the everlasting round of a business-mill of his own creating. It is almost unnecessary to add that he was selfish to the back-bone, and that the only individual who did not see the fact was himself.

When Frank reached the age of eighteen, Mr Allfrey called him into his private “study,”—so called because he was in the habit of retiring regularly at fixed periods every day to study *nothing* there,—and, having bidden him sit down, accosted him thus:—

“Well, boy, have you thought over what I said to you yesterday about fixing upon some profession? You are aware that you cannot expect to lead a life of idleness in this world. I know that you are fit for nothing, but fit or not fit, you must take to something without delay.”

Frank felt a sensation of indignation at being spoken to thus rudely, and in his heart he believed that if he was indeed fit for nothing, his sad condition was due much more to his uncle’s neglect than to his own perversity. He did not, however, give utterance to the thought, because he was of a respectful nature; he merely flushed and said,—“Really, uncle, you do me injustice. I may not be fit for much, and every day I live I feel bitterly the evil of a neglected education, but—”

“It’s well, at all events,” interrupted Mr Allfrey, “that you admit the fact of your having neglected it. That gives you some chance of amendment.”

Frank flushed again and drew his breath shortly; after a moment’s silence he went on:—

“But if I am not fit for much, I am certainly fit for something. I have only a smattering of Latin and Greek, it is true, and a very slight knowledge of French, but, if I am to believe my teacher’s reports, I am not a bad arithmetician, and I know a good deal of mathematics, besides being a pretty fair penman.”

“Humph! well, but you know you have said that you don’t want to enter a mercantile or engineer’s office, and a smattering of Latin and Greek will not do for the learned professions. What, therefore, do you propose to yourself, the army, eh? it is the only opening left, because you are now too old for the navy.”

“I wish to be an artist,” said Frank with some firmness.

“I thought so; the old story. No, sir, you shall never be an artist—at least not with my consent. Why, do you suppose that because you can scribble caricatures on the fly-leaves of your books you have necessarily the genius of Rubens or Titian?”

“Not quite,” replied Frank, smiling in spite of himself at the irascibility of the old gentleman, “and yet I presume that Rubens and Titian began to paint before either themselves or others were aware of the fact that they possessed any genius at all.”

“Tut, tut,” cried Mr Allfrey impatiently, “but what have you ever done, boy, to show your ability to paint?”

“I have studied much, uncle,” said Frank eagerly, “although I have said little to you about the matter, knowing your objection to it; but if you would condescend to look at a few of my drawings from nature, I think—”

“Drawing from nature,” cried Mr Allfrey with a look of supreme contempt, “what do *I* care for nature? What have *you* to do with nature in this nineteenth century? Nature, sir, is only fit for savages. There is nothing natural now-a-days. Why, what do you suppose would become of my ledger and cash-book, my office and business, if I and my clerks raved about nature as you do? A fig for nature!—the less you study it the better. *I* never do.”

“Excuse me, sir,” said Frank respectfully, “if I refuse to believe you, because I have heard you frequently express to friends your admiration of the view from your own drawing-room window—”

“Of course you have, you goose, and you ought to have known that that was a mere bit of conventional humbug, because, since one is constrained unavoidably to live in a world full of monstrous contradictions, it is necessary to fall in with its habits. You ought to know that it is customary to express admiration for a fine view.”

“You spoke as if you felt what you said,” replied Frank, “and I am certain that there are thousands of men in the position of yourself and your clerks who delight in nature in all her varied aspects; who, because they unfortunately see so little of her in town, make it their ambition to have cottages in the country when they can afford it, and many of whom decorate their walls with representations of nature.”

“Frank,” said Mr Allfrey, somewhat solemnly, as he turned his gaze full on the animated face of his nephew, “*if* I could get you put into a lunatic asylum without a doctor’s certificate I would do so without delay, but, that being impossible just now—although I think it will be not only possible but necessary ere long—I have to make you a final proposal. It is this:— that, as you express such a powerful objection to enter an office in this country, you should go abroad and see whether a three-legged stool is more attractive in foreign parts than it is in England. Now, I happen to have a friend in California. If your geography has not been neglected as much as your Latin, you will remember that this country lies on the western seaboard of North America, not far from those gold-fields which have been recently turning the world upside-down. Will you go?”

“I shall be delighted to go,” said Frank with enthusiasm.

“Eh!” exclaimed Mr Allfrey, with a look of surprise, as if he could not understand the readiness with which his nephew agreed to the proposal, “why, how’s this? I had fully expected you to refuse. Remember, boy, it is not to be a romantic gold-digger, which is another name for a born idiot, that I would send you out to California. It is to be a clerk, a quill-driver. D’you understand?”

“I understand, uncle, perfectly,” replied Frank with a smile. “The fact is that I had made up my mind, lately, not to oppose your wishes any longer, but to agree to go into an office at home. Of course it is more agreeable to me to think of going into one abroad.”

“I’m glad you take such a sensible view of the matter, Frank,” said Mr Allfrey, much mollified.

“Besides,” continued Frank, “I have read a good deal about that country of late, and the descriptions of the magnificence of the scenery have made me long to have an opportunity of painting it and —”

He paused abruptly and started up, for his uncle had seized a book, which usually lay open on his desk, and was in fact a sort of dummy

intended to indicate the “study” that was supposed to go on there. Next moment Frank sprang laughing into the passage, and the book flew with a crash against the panels of the door as he shut it behind him, leaving Mr Allfrey to solace himself with a large meerschaum, almost the only unfailing friend that he possessed.

Thus it came to pass that Frank Allfrey went out to the gold regions of California.

Chapter Two.

Frank discusses his Prospects with a Friend.

We pass over our hero’s long voyage round “the Horn,” and introduce him in a totally new scene and under widely different circumstances—seated near a magnificent tree of which he is making a study, and clad in a white linen coat and pantaloons and a broad-brimmed straw hat.

Just the day before, the “House” to which he had been sent had failed. Two years had he spent in grinding at its account books, perched on a three-legged stool, and now he found himself suddenly cast loose on the world. Of course when the stool was knocked from under him his salary was stopped, and he was told by his employers that it would be necessary for him to go elsewhere to earn a subsistence.

This was rather a startling piece of advice, and for a time Frank felt much depressed, but on returning to his lodgings the day he received his dismissal, his eye fell on his palette and brushes, which he at once seized, and, hastening out to his favourite tree, was soon so thoroughly absorbed in the study of “nature” that his sorrows vanished like morning mist.

After three hours’ steady work he arose refreshed in soul and comforted.

Thereafter he returned to his lodgings and sat down to think over his prospects. His cogitations were temporarily interrupted, and afterwards materially assisted, by a short thick-set man of about thirty years of age who entered with a deferential air, and pulled his forelock.

"Come in, Joe. I was just thinking over my future plans, and I daresay you can assist me, being, I suppose, in the same fix with myself."

Joe Graddy had been a porter in the "House" which had failed, and was indeed in the "same fix," as Frank said, with himself.

"I've comed, sir," said Joe, "to ax yer advice, an' to offer ye my sarvice, it it's of any use," said the porter, who was a shrewd straightforward man, and had originally been a sailor.

"If you had come to offer me advice and ask my services," said Frank, "I would have been better pleased to see you. However, sit down and let me hear what you have to say."

"Well, sir," said Joe; "this is wot I've got for to say, that we are in what the Yankees call a pretty considerable fix."

"I know it, Joe; but how do you think we are to get out of the fix?"

"That's just wot I comed for to ax," said the man; "and when you've told me how, I'll lend a hand to weigh anchor an' set sail. The fact is, I'm in want of a place, and I'm willing to engage with *you*, sir."

Frank Allfrey experienced a strange mingling of feelings when he heard this. Of course he felt much gratified by the fact that a man so grave and sensible as Joe Graddy should come and deferentially offer to become his servant at a time when he possessed nothing but the remnant of a month's salary; and when he considered his own youth, he felt amazed that one so old and manly should volunteer to place himself under his orders. The fact is that Frank was not aware that his straightforward earnest manner had commended him very

strongly to those with whom he had lately come in contact. He was one of those attractive men whose countenances express exactly what they feel, who usually walk with a quick earnest step, if we may say so, and with a somewhat downcast contemplative look. Frank knew well enough that he was strong and tall, unusually so for his age, and therefore did not continually assert the fact by walking as if he was afraid to fall forward, which is a common practice among men who wish to look bigger than they are. Besides, being an ardent student of nature, Frank was himself natural, as well as amiable, and these qualities had endeared him to many people without his being aware of it.

“Why, Joe!” he exclaimed, “what do you mean?”

“I mean wot I says, sir.”

“Are you aware,” said Frank, smiling, “that I do not possess a shilling beyond the few dollars that I saved off my last month’s salary?”

“I s’posed as much, sir.”

“Then if you engage with me, as you express it, how do you expect to be paid?”

“I don’t expect to be paid, sir.”

“Come, Joe, explain your meaning, for I don’t pretend to be a diviner of men’s thoughts.”

“Well, sir, this is how it is. W’en we got the sack the other day, says I to myself, says I, now you’re afloat on the world without rudder, compass, or charts, but you’ve got a tight craft of your own,—somewhat scrubbed, no doubt, with rough usage, but sound,—so it’s time for you to look out for rudder, compass, and charts, and it seems to me that them to be found with young Mister Allfrey, so you’d better go an’ git him to become skipper o’ your ship without delay. You see, sir, havin’ said that to myself, I’ve took my own advice, so if you’ll take command of me, sir, you may steer me where

you please, for I'm ready to be your sarvant for love, seein' that you han't got no money."

"Most obliging of you," said Frank, laughing, "and by this offer I understand that you wish to become my companion."

"Of coorse, in a country o' this kind," replied Graddy, "it's difficult,—I might a'most say impossible,—to be a man's sarvant without bein' his companion likewise."

"But here is a great difficulty at the outset, Joe. I have not yet made up my mind what course to pursue."

"Just so, sir," said the ex-seaman, with a look of satisfaction, "I know'd you wouldn't be doin' that in a hurry, so I've comed to have a talk with 'e about it."

"Very good, sit down," said Frank, "and let us consider it. In the first place, I regret to say that I have not been taught any trade, so that I cannot become a blacksmith or a carpenter or anything of that sort. A clerk's duties I can undertake, but it seems to me that clerks are not much wanted here just now. Porterage is heavy work and rather slow. I may be reduced to that if nothing better turns up, but it has occurred to me that I might try painting with success. What would you say to that, Joe?"

The man looked at Frank in surprise. "Well," said he, "people don't look as if they wanted to paint their houses here, an' most of 'em's got no houses."

"Why, man, I don't mean house-painting. It is portrait and landscape painting that I refer to," said Frank, laughing.

Joe shook his head gravely. "Never do, Mr Frank—"

"Stop! if you and I are to be companions in trouble, you must not call me *Mister* Frank, you must drop the mister."

"Then I won't go with 'e, sir, that's all about it," said Joe firmly.

"Very well, please yourself," said Frank, with a laugh; "but if painting is so hopeless, what would you advise?"

"The diggin's," answered Joe.

"I thought so," said Frank, shaking his head.

"Most men out of work rush to the diggings. Indeed, many men are fools enough to leave their work to go there, but I confess that I don't like the notion. It has always appeared to me such a pitiful thing to see men, who are fit for better things, go grubbing in the mud for gold."

"But what are men to do, Mr Frank, w'en they can't git no other work?"

"Of course it is better to dig than to idle or starve, or be a burden on one's friends; nevertheless, I don't like the notion of it. I suppose, however, that I must try it just now, for it is quite certain that we cannot exist here without gold. By the way, Joe, have you got any more?"

"Not a rap, sir."

"H'm, then I doubt whether I have enough to buy tools, not to speak of provisions."

"I've bin' thinkin' about that, sir," said Joe, "and it seems to me that our only chance lie in settin' up a grog and provision store!"

"A grog and provision store!"

"Yes, sir, the fact is that I had laid in a stock of pipes and baccy, tea and brandy, for winter's use this year. Now as things have turned out, I shan't want these just at this minute, so we can sell 'em off to the diggers at a large profit. We might make a good thing of it, sir, for

you've no notion wot prices they'll give for things on the road to the diggin's—"

Frank here interrupted his friend with a hearty laugh, and at the same time declared that he would have nothing to do with the grog and provision store; that he would rather take to portorage than engage in any such enterprise.

"Well, then, sir, we won't say no more about that, but wot coorse would ye advise the ship's head to be laid?"

Frank was silent for a few minutes as he sat with downcast eyes, absorbed in meditation. Then he looked up suddenly, and said, "Joe, I'll give you a definite answer to that question to-morrow morning. To-night I will think over it and make arrangements. Meanwhile, let it suffice that I have made up my mind to go to the diggings, and if you remain in the same mind to-morrow, come here all ready for a start."

The ruddy countenance of the sturdy ex-porter beamed with gratification as he rose and took his leave of Frank, who heard him, as he walked away, making sundry allusions in nautical phraseology to having his anchor tripped at last, and the sails shook out, all ready for a start with the first o' the flood-tide in the morning!

Chapter Three.

A Visit to the Diggings resolved on. Terrible Commencement of the Journey.

When next morning arrived, Joe Graddy, true to his word, appeared with the first—if not of the "flood-tide," at least of the morning sun, and Frank told him that, on the previous evening, he had made arrangements to go to the diggings in company with a party that was to start the following day; that he had already made purchases of the few things which they would require on the journey, and that the only thing remaining to be done was to pack up.

“Now, Joe, you must go at once to the principal guide and make arrangements with him as to that brandy and tea on which you expect to found your future fortunes. I told him to expect a visit from you early in the day.”

“Wotiver you do, do it at once,” said Joe, putting on his straw hat with an energetic slap. “That’s one of my mottos. I’ll go an’ carry it into practice.”

The following day saw Frank and his man set forth with a party of about thirty men, all of whom were clad in blue or red flannel shirts, straw hats, big boots, and other rough garments; with rifles on their shoulders, and bowie-knives and pistols in their belts. These were men of various nations; Californians, Chinamen, Malays, Americans, Scotch, and English, and many of them looked not only rough but savage. In truth, they were as diverse in their characters as in their appearance, some of them being men who had evidently moved in good society, while others were as evidently of the lowest—probably the convict—class. They had all, however, been thrown together by the force of a common interest. All were bound for the gold-mines, and it was necessary that they should travel in company for mutual protection and assistance.

There were two guides, who had charge of ten pack-mules loaded with provisions for the storekeepers at some remote diggings. These guides were stern, powerful, bronzed fellows, who had to make their way among rough men in difficult circumstances, and they seemed to be quite prepared to do so, being fearless, resolute, and armed to the teeth.

Joe Graddy had obtained permission, on promise of payment, to place his little fortune on the backs of the mules, so that he and Frank had nothing to carry save their weapons and blankets, besides a tin cup each at their girdles, and a water-bag.

“Come, I like this sort of thing,” said one of the party, an Englishman, when the order was given to start. “If it is all like this it will be uncommonly jolly.”

“I guess it ain’t all like this, stranger,” said one of the Americans with a good-humoured grin.

One of the guides laughed, and the other ejaculated “humph!” as they set forward.

There was indeed some ground for the remark of the Englishman, for the country through which they passed was most beautiful, and the weather delicious. Their track lay over an undulating region of park-like land covered with short grass; clumps of bushes were scattered here and there about the plain, and high above these towered some magnificent specimens of the oak, sycamore, and Californian cypress, while in the extreme distance rose the ranges of the “golden” mountains—the Sierra Nevada—in the midst of which lay the treasures of which they were in search.

All the members of the party were on foot, and, being fresh, full of hope, and eager to reach their destination. They chatted gaily as they marched over the prairie.

On the way the good-humoured American seemed to take a fancy to Frank, with whom he had a great deal of animated conversation. After asking our hero every possible question in regard to himself and intentions, he told him that he was Yankee,—a piece of superfluous information, by the way;—that his name was Jeffson, that he was a store-keeper at one of the farthest off diggings, that the chief part of the loading of one of the mules belonged to him, and that he was driving a considerable business in gold-dust without the trouble of digging for it.

Towards evening they came to a very small hole in the plain, which was dignified with the name of a well. Here they stopped to replenish their water-casks.

“Take as much as you can carry, men,” said the principal guide, “we’ve a long march to the next well, over sandy ground, and sometimes there ain’t much water in it.”

They all followed this advice with the exception of one man, a coarse savage-looking fellow, with a huge black beard and matted locks, who called himself Bradling, though there was ground for doubting whether that was the name by which he had been at first known in the world. This man pulled out an enormous brandy-flask, and with a scoffing laugh said:—

“This is the water for me, mister guide, pure and unmixed, there’s nothin’ like it.”

He nodded as he spoke, and put the flask to his lips, while the guide, who made no rejoinder, eyed him with a grave, stern expression of countenance.

That night they all encamped under the shade of a small clump of trees, kindled several large fires, and, heartily glad to be relieved of their back-burdens, sat down to enjoy supper. After it was over pipes were smoked and stories told, until it was time to retire to rest. Then each man lay down under his blanket, the sky being his canopy, and the howling of the wolves his lullaby.

It seemed to each sleeper, when awakened next morning, that he had only just closed his eyes, so sound had been his repose, and there was a great deal of violent yawning, stretching, grumbling, and winking before the whole party was finally aroused and ready to set forth. However, they got under way at last, and early in the forenoon came to the edge of a sandy plain, which appeared to be interminable, with scarcely a blade of grass on it. Here they halted for a few minutes.

“How wide is the plain, guide?” inquired Frank.

“Forty miles,” replied the man, “and there’s not a drop of water to be had till the end of the first twenty. We’ll get there about sundown, and replenish our kegs, if it’s not all gone dry. Let me warn you, however, to use the water you have sparingly.”

“Do we encamp at the end o’ the first twenty?” asked Jeffson.

“Yes, you’ll find it a long enough day’s march.”

No one made any reply, but by their looks they appeared to think nothing of a twenty-mile walk. They found, however, that such a distance, traversed over loose sand ankle-deep, and under a burning sun, was not what any of them had been accustomed to.

On entering the plain they observed that the heat had opened cracks and fissures in the earth, which omitted a fiery heat. At intervals pyramids of sand arose, which were borne with great velocity through the air, sometimes appearing in the shape of columns sixty feet high, which moved majestically over the plain. Ere long some of these clouds of sand enveloped them, and they were accompanied by hot winds, which seemed to shrivel up, not only the skin, but the very vitals of the travellers. The pores of their skin closed, producing feverish heat in the blood and terrible thirst, while their eyes became inflamed by the dazzling glare of the sun on the white sand.

Of course most of the party applied pretty frequently to their water-kegs and bottles. Even Bradling gave up his brandy, and was content to refresh himself with the little of the pure element which chanced to remain in his formerly despised, but now cherished, water-bottle. The guides carried skins of water for themselves and the mules, but these they opened very seldom, knowing full well the torments that would ensue if they should run short before getting across the scorching desert.

Thus they went on hour after hour, becoming more and more oppressed at every step. The improvident among them drank up the precious water too fast, and towards evening began to sigh for relief, and to regard with longing eyes the supplies of their more self-denying companions. They consoled themselves, however, to some extent, with thoughts of the deep draughts they hoped to obtain at night.

Our hero and Joe were among those who reserved their supplies.

As night approached the thirst of the travellers increased to a terrible extent, insomuch that they appeared to forget their fatigue, and hurried forward at a smart pace, in the eager hope of coming to the promised water-hole. Great, therefore, was their dismay when the guides told them that it was impossible to reach the place that night, that the mules were too much knocked up, but that they would get to it early on the following day.

They said little, however, seeming to be too much depressed to express their disappointment in words, but their haggard looks were fearfully eloquent. Some of those who had wasted their supplies earnestly implored their more prudent comrades to give them a little, a "very little," of the precious element, and two or three were generous enough to give away a few drops of the little that still remained to them.

The place where they had halted was without a scrap of vegetation, and as there was no wood wherewith to kindle a fire, they were compelled to encamp without one. To most of the travellers, however, this was a matter of little importance, because they were too much exhausted to eat. Those who had water drank a mouthful sparingly, and then lay down to sleep. Those who had none also lay down in gloomy silence. They did not even indulge in the usual solace of a pipe, for fear of adding to the burning thirst with which they were consumed.

At day-break they were aroused by the guides, and rose with alacrity, feeling a little refreshed, and being anxious to push on to the water-hole, but when the sun rose and sent its dazzling rays over the dreary waste, giving promise of another dreadful day, their spirits sank again. Seeing this the principal guide encouraged them by saying that the water-hole was not more than three miles distant.

Onward they pushed with renewed energy and hope. At last they reached the place, and found that the hole was dry!

With consternation depicted on their haggard countenances the men looked at the guide.

“Dig, men, dig,” he said, with a troubled look on his bronzed face, “there may be a little below the surface.”

They did dig with shovels, spades, knives, sticks, hands, anything, and they dug as never men did for gold. All the gold in California would they have given at that time for a cupful of cold water, but all the gold in the world could not have purchased one drop from the parched sand. Never was despair more awfully pictured on men’s faces as they gazed at one another after finding that their efforts were unavailing. Their case was truly pitiable, and they turned to the guide as if they expected commiseration; but the case had become too desperate for him to think of others. In a stern, hard voice he cried—

“Onwards, men! onwards! The nearest stream is forty miles off. None of those who have water can spare a drop, and death lies in delay. Every man for himself now. Onward, men, for your lives!”

Saying this he applied the whip to the poor mules, which, with glazed eyes and hanging ears, snorted with agony, and dropped down frequently as they went along, but a sharp thrust of the goad forced them to rise again and stumble forward.

“God help the poor wretches,” murmured Joe Graddy to Frank as they staggered along side by side. “Is our supply nearly out—could we not give them a drop?”

Frank stopped suddenly, and, with desperate energy, seized the keg which hung over his shoulder, and shook it close to the ear of his companion.

“Listen,” he said, “can we afford to spare any with forty miles of the desert before us? It is our life! we must guard it.”

Graddy shook his head, and, admitting that the thing was out of the question, went silently forward. It was all that Frank himself could do to refrain from drinking the little that remained, for his very vitals seemed on fire. Indeed, in this respect, he suffered more than some

of his companions, for while those of them who had not charge of the water-kegs and bottles experienced the pain of suffering and hopeless longing, he himself had the additional misery of having to resist temptation, for at any moment he could have obtained temporary relief by gratifying his desires at the expense of his companions.

Overpowered with heat, and burnt up with thirst, those without water to moisten their parched lips and throats could scarcely keep pace with the guide. By degrees they threw away their possessions—their blankets, their clothes,—until the plain behind was strewn with them.

“Don’t go so fast,” groaned one.

“Won’t ye halt a while?” said another uttering a curse—then, suddenly changing his tone, he implored them to halt.

“We cannot halt. It is death to halt,” said the guide, in a tone so resolute and callous that those who were enfeebled lost heart altogether, and began to lag behind.

At that time the man Bradling, who had become nearly mad with drinking brandy, ran in succession to each of those who had water, and offered all that he possessed of the former for one mouthful of the latter. His flushed face, glassy eyes, and haggard air, told how terrible was his extremity; but although some might have felt a touch of commiseration not one was moved to relieve him. The law of self-preservation had turned the hearts of all to stone. Yet not quite to stone, for there were one or two among them who, although nothing would induce them to give a single drop to a comrade, were content to do with less in order that they might relieve a friend!

One man in his desperation attempted to lick the bodies of the mules, hoping to obtain relief from the exudations of their skins, but the dust on them rendered this unavailing.

Suddenly Bradling darted at the water-skin hanging by the side of the guide’s mule, and swore he would have it or die.

“You’ll die, then,” observed the guide quietly, cocking a pistol and presenting it at his head.

Bradling hesitated and looked at the man. There was a cold stony stare, without the least excitement, in his look, which convinced him that his attempt, if continued, would end in certain death. He fell back at once with a deep groan.

Onward they pressed, hour after hour, until, in many of them, exhausted nature began to give way. They became slightly delirious, and, finding that they could not keep up with the party, a few determined, if left behind, to keep together. Among the number was Bradling, and terrible were the imprecations which he hurled after the more fortunate as they parted. It seemed cruel; but to remain with them would have done no good, while it would have sacrificed more lives. Bradling seemed to regard Frank as his chief enemy, for he shouted his name as he was moving off, praying God to send down the bitterest curses on his head.

A sudden impulse moved the heart of Frank. He turned back, poured about half a wine-glassful of water into a tin can and gave it to the unfortunate man, who seized and drained it greedily, licking the rim of the can and gazing into it, to see that not a drop had escaped him, with an eagerness of manner that was very painful to behold.

“God bless you,” he said to Frank with a deep sigh.

“Do you think,” said Frank earnestly, “that God will curse and bless at your bidding?”

“I don’t know, and don’t care,” replied the man, “but I say God bless you. Go away and be content with that.”

Frank had already lost too much time. He turned and hastened after the others as fast as possible.

“They won’t last long,” said the guide harshly, as he came up. “The wolves or the redskins will soon finish them. You were a fool to waste

your water on them.”

“You are a fool to give your opinion to one who neither asks nor cares for it,” retorted Frank.

The man took no notice of the reply, and Frank afterwards felt somewhat ashamed of being so hasty, for at night, when they encamped, the guide advised him, in a friendly way, to keep a sharp look-out on the water, as those who had finished theirs during the day would be not unlikely to make an attack on those who had any left. Frank thanked him; but being too much fatigued to mount guard, he and Graddy, with his Yankee friend Jeffson, slept together, rolled in their blankets, with pistols in their hands and the water-bottles attached to them. Nothing disturbed them, however, during the night, save the howling of wolves, and the imploring cries, irritated exclamations, and angry discontent of the suffering men, which latter sounds were far more terrible than the cries of wild beasts.

A little before day-break some who could not rest sprang up and continued their journey, walking at their utmost speed until they sighted the woodland. Then, indeed, did a new sensation of delight fill their souls as they gazed upon the green verdure. Even the mules, though their eyes were bandaged, seemed to know that water was near. They snuffed the breeze, pricked up their ears, and neighed loudly. On reaching the woods, and sighting the river, a momentary halt was called to cast off the burdens of the mules. This was speedily done, and then they all rushed—men and mules together—deep into the stream and luxuriated in the cool water!

When they had slaked their thirst to the uttermost, Graddy proposed that a party should be sent back to the relief of those left behind, and offered to join it. Frank seconded this proposal, and the Yankee, Jeffson, volunteered to join it. A German named Meyer, who had borne his sufferings with great fortitude, also volunteered, as did a Scotchman named Douglas.

“You may propose what you please,” said the guide, when he heard them talking, “but I will not wait for you.”

“Why not?” inquired Frank somewhat angrily. “Because I was not hired for such work. It is my business to push on to the mines, and push on I will, follow who pleases.”

“Bot fat if ve compel you for to stay?” asked the German with an indignant air.

“Then you will guide yourselves as you best may, I will refuse to go a step further. Is it fair that I should be hired for a special job and then be asked to turn aside and risk my life for the sake of men who have chosen to throw their own lives away, and who are no doubt dead by this time?”

A number of the travellers applauded this sentiment, and it was evident that the philanthropists were very much in the minority, but here Frank stepped in and turned the scale, at least to some extent.

“Men,” said he, raising his clenched fist, “I know not what your notions of humanity may be, or your ideas of justice, but this I know, that the man who has the power to help a fellow-mortal in deadly distress and holds back his hand, is worse than a beast, for he has reason to guide him, and a beast has not. I and my comrade Joe Graddy, at least, will remain behind, even though we should be left alone, but I am convinced that we shall *not* be left alone. Meanwhile,” he added, addressing the guide, “I shall pay you my share of what is due, after which you may go, and I shall wish you no worse luck than that your conscience may go with you and be a lively companion.”

“There is more to be said than that,” observed the Yankee at this point. “You are so very fond of fulfilling your duty, mister guide, that I have concluded to relieve you of some of it. One of these mules is loaded entirely with my goods. Now, I guess, I’ll remain behind with Mister Alfrey, and keep the mule at a reasonable valuation.”

“I’ll not part with him at any price,” said the guide with a sneer. “I’ll carry your goods to the diggings or I’ll unstrap them, stranger, and let

you carry them the best way you can, but I'm not bound to sell my mules to you."

"Now, men," cried the Yankee, springing forward and addressing his comrades, "I appeal to you all in the name of fair-play! Here am I, willin' to pay this man a fair price for his mule. There's not a pick or shovel belongin' to any one else on its back, so I'm doin' damage to nobody by the proposal. This critter is bent on refusin' me out of spite; now, I propose to settle the question here with the rifle or pistol or bowie-knife. He is welcome to choose his weapon—it matters nothin' to me, and whichever falls loses the day."

There was a burst of laughter at this, and the majority insisted that the guide should give in, while a few, who were fond of excitement, suggested that the two should be allowed to fight it out, but this the guide refused to do; and when his comrade, the second guide, stepped forward and said he would join those who wanted to remain, he grumblingly agreed to part with the mule for its full value.

The bargain was soon made. The one party continued their journey; the other, with an abundant supply of water, returned to those who had been left behind, and reached them in time to save their lives.

That night, as Frank and Graddy lay together under the same blanket, the latter observed that, "he had travelled a goodish bit over the univarse, but that he had niver before comed across nothin' like the experiences of the last two days; and that, if the end of their diggin' for goold woe to be as bad as the begginin', the sooner they set about diggin' their graves the better!"

With which sentiment Frank Alfrey heartily agreed, and thereafter fell asleep.

Chapter Four.

Describes an Incident of Devouring Interest, an Unexpected Visit, and a Violent Assault.

Next day our gold-hunters and the rescued men reached the forest, and after resting a short time to recruit, continued their journey to the diggings.

The particular part towards which their steps were directed was Bigbear Gully, a small and comparatively unknown, because recently discovered, gorge, opening out of the great Sacramento valley. On the way they passed through a country the very reverse of that which had so nearly cost them their lives. It was well wooded and watered, and abounded with game of various kinds, particularly hares, deer, quails, and other creatures; shooting these afforded pleasant pastime to the sporting characters of the party, and consuming them was enjoyed by all without exception!

Rance, the guide, now that he was separated from his comrade, turned out to be a capital fellow, and, during the remainder of the journey, did much to make the travellers harmonise. The party now consisted of our hero and Joe Graddy, Jeffson the Yankee, Douglas the Scot, Meyer the German, and Bradling; all of whom, excepting the last, were good and true men. As for Bradling, no one could make out what he was, for at times he was amiable and polite, while at other times he was savage and morose.

One night the travellers reached a part of the mountains which was densely covered with wood. As there was no moon, and it was almost impossible to see a step before them, Rance called a halt.

"We must sleep here," he said to Jeffson. "I had half expected to make out Bigbear Gully to-night, but the road is not safe; too many precipices and steep parts, which require to be passed in daylight."

"Very good, Rance; then we had better set about encamping."

"'Tis a dreary-looking place," said Frank Alfrey, glancing round him.

“Twill look more cheery when the fire is kindled,” said Jeffson.

“Dismal enough to give a man the blues just now, anyhow,” observed Joe Graddy.

This was undoubtedly true. There is, perhaps, nothing more desolate, more cheerless, more oppressive to the spirits, than the influence of the woods at night. They are so dark, so black-looking and dismal, that one is led irresistibly to contrast them with home and its bright fireside and well-remembered faces—just as the starving man is led by his condition to dream of rich feasts. In both cases the result is the same. The dream of food makes the starving man’s case more terrible, and the thought of home makes the dreariness of the dark wilderness more dismal.

But what magic there is in a spark of light! The first burst of flame drives all the sad lonesome feelings away, and the blaze of the increasing fire creates positively a home-feeling in the breast. The reason of this is plain enough. Before the fire is kindled the eye wanders restlessly through the dim light that may chance to straggle among the trees. The mind follows the eye, and gets lost among indistinct objects which it cannot understand. The feelings and the faculties are scattered—fixed upon nothing, except perhaps on this, that the wanderer is far, very far, from home. But when the bright glare of the fire springs up, everything beyond the circle of light becomes pure black. The thoughts and feelings are confined within that chamber with the ebony walls, and are forcibly attracted and made to rest upon the tree-stems, the leaves, the flowers, and other objects that glow in the ruddy blaze. Thus the thoughts are collected, and the wanderer feels, once more, something of the *home-feeling*.

It was not long before our travellers realised this agreeable change. The depression of their spirits vanished with the darkness and rose with the leaping flames, until some of the members of the party became quite facetious. This was especially the case when supper had been disposed of and the pipes were lighted. It was then that Rance became chatty and anecdotal in his tendencies, and Jeffson told marvellous stories of Yankee-land, and Douglas, who devoted

himself chiefly to his pipe, became an attentive listener and an awkward tripper up of the heels of those who appeared to be “drawing the long-bow,” and Meyer looked, if possible, more solid and amiable than at other times, and Frank enjoyed himself in a general way, and made himself generally agreeable, while Joe Graddy became profoundly sententious. Even Bradling’s nature appeared to be softened, for he looked less forbidding and grumpy than at other times, and once condescended to remark that a life in the woods was not such a bad one after all!

“Not such a bad one!” cried Joe Graddy; “why, messmate, is that all you’ve got to say about it? Now I’ll give ’e my opinion on that head. This is where it lies—see here.” (Joe removed his pipe from his mouth and held up his fore-finger by way of being very impressive.) “I’ve travelled pretty well now in every quarter of the globe; gone right round it in fact, and found that it *is* round after all,—’cause why? I went in, so to speak, at one end from the west’ard an’ comed out at the same end from the east’ard, though I must confess it all appeared to me as flat’s a pancake, always exceptin’ the mountainous parts of it, w’ich must be admitted to be lumpy. Hows’ever, as I wos sayin’, I’ve bin a’most all over the world—I’ve smoked wi’ the Turks, an’ hobnobbed with John Chinaman, an’ scrambled through the jungles of the Indies, an’ gone aloft the Himalayas—”

“What, have you seen the Himalayas?” asked Jeffson, with a doubtful look.

“How could I be among ’em without seein’ of ’em?” replied Joe.

“Ah, das is goot—vair goot,” said Meyer, opening his huge mouth very wide to let out a cloud of smoke and a quiet laugh.

“Well, but you know,” said Jeffson, apologetically, “a poor fellow livin’ out here in the wilderness ain’t just always quite up in the geographical changes that take place on the airth. When was it that they cut a ship canal up to the Himalayas, and in what sort o’ craft did ye sail there?”

"I didn't go for to say I sailed there at all," retorted Joe; "I walked it partly, and went part o' the way on elephants an' horses, and went aloft o' them there mountains pretty nigh as far up as the main-topmast cross-trees of 'em; I've also slep' in the snow-huts of the Eskimos, an' bin tossed about in a'most every sort o' craft that swims, but wot I've got to say is this, that of all the things I ever did see, travellin' in Californy beats 'em all to sticks and stivers."

"You've got a somewhat indefinite way of stating things," observed Douglas. "D'ee mean to say that it beats them in a good or a bad way?"

"I means wot I says," replied Joe, with a stern expression of countenance, as he relighted his pipe with the burnt end of a piece of stick. "I means that it beats 'em *both* ways;—if ye haven't got schoolin' enough to understand plain English, you'd better go home again an' get your edicashun completed."

"I'd do that at once, Joe, if I could only make sure o' finding the schoolmaster alive that reared *you*."

"Ha! goot," observed the German. "Him must be von notable krakter."

Further conversation on this point was cut short by the sudden appearance within the circle of light of an Indian, who advanced in a half-crouching attitude, as if he feared a bad reception, yet could not resist the attraction of the fire.

At that time some of the tribes in the neighbourhood of Bigbear Gully had committed numerous depredations at the diggings, and had murdered several white men, so that the latter had begun to regard the Red Men as their natural enemies. Indeed some of the more violent among them had vowed that they would treat them as vermin, and shoot down every native they chanced to meet, whether he belonged to the guilty tribe or not. The Indian who now approached the camp-fire of the white men knew that he had good ground to fear the nature of his reception, and there is no doubt that it would have

been an unpleasant one had it not been for the fact that his appearance was pitiable in the extreme.

He was squalid, dirty, and small, and so attenuated that it was evident he had for some time been suffering from starvation. He wore no clothing, carried no arms of any kind, and was so utterly abject, and so evidently incapable of doing harm to any one, that none of the party thought it worth while to rise, or lay hands on a weapon. When he appeared, Joe Graddy merely pointed to him with the stem of his pipe and said—

“There’s a beauty, ain’t it? another of the cooriosities of Californy!”

“Starvin’,” observed Rance.

“Poor wretch!” exclaimed Frank, as the man advanced slowly with timid steps, while his large sunken eyes absolutely glared at the broken meat which lay scattered about.

“Give him von morsel,” suggested Meyer.

“Give him a bullet in his dirty carcace,” growled Bradling.

The Indian stopped when within ten paces of the fire and grinned horribly.

“Here, stop up your ghastly mouth wi’ that,” cried Jeffson, tossing a lump of salt-pork towards him.

He caught it with the dexterity of a monkey, and, squatting down on the trunk of a fallen tree, devoured it with the ravenous ferocity of a famishing hyena. The piece of pork would have been a sufficient meal for any ordinary man, but it quickly vanished down the throat of the savage, who licked his fingers, and, with eyes which required no tongue to interpret their meaning, asked for more!

“Look out!” cried Joe Graddy, tossing him a sea biscuit as one throws a quoit.

The Indian caught it deftly; crash went his powerful teeth into the hard mass, and in an incredibly short time it was—with the pork!

The whole party were so highly amused by this, that they “went in,” as Jeffson said, “for an evening’s entertainment.” One tossed the poor man a cut of ham, another a slice of pork, a third a mass of bread, and so they continued to ply him with victuals, determined to test his powers to the uttermost.

“Try another bit of pork,” said Douglas, laughing, as he threw him a cut as large as the first; “you’ve finished all the cooked meat now.”

The Indian caught it eagerly, and began to devour it as though he had eaten nothing.

“He’s tightening up like a drum,” observed Jeffson, handing him a greasy wedge off a raw flitch of bacon.

“Him vill boost,” said Meyer, staring at the Indian and smoking slowly, owing to the strength of his amazement.

“Jack the Giant Killer was a joke to him,” muttered Graddy.

“A bottomless pit,” observed Rance, referring to his stomach.

The Indian, however, proved that Rance was wrong by suddenly coming to a dead halt and dropping the last morsel he was in the act of raising to his mouth. He then heaved a deep sigh and looked round on the whole party with a radiant smile, which was literally sparkling by reason of the firelight which glittered on his greasy countenance.

“What! stuffed full at last?” exclaimed Jeffson, as they all burst into a fit of laughter.

“Ay, chock full to the beams,” said Joe Graddy; “moreover, hatches battened down, topsails shook out, anchor up, and away!”

This was indeed the case. Having eaten as much as he could hold, the poor Indian attempted to rise and walk off, but he suddenly fell down, and rolled about groaning and rubbing himself as if in great agony. The alarmed travellers began to fear that the poor little man had absolutely, as Joe said, eaten himself to death. He recovered, however, in a few minutes, rose again with some difficulty, and went off in the midst of a splendid burst of moonlight which appeared to have come out expressly to light him on his way! His gait was awkward, and he was obliged to sit down every twenty or thirty yards like a man resting under a heavy load. When last seen on his diminutive legs he looked like a huge bloated spider waddling into the obscurity of the forest.

“How disgusting!” perhaps exclaims the reader. True, yet not *much* more disgusting than the gormandising which goes on among too many civilised men, who, besides possessing better knowledge, have got dyspepsia to inform them that they daily act the part of the Californian savage, while many learned doctors, we believe, tell them that it is not so much quality as quantity that kills.

That eventful night did not terminate, however, with the departure of the Indian. Another scene was enacted, but, unlike the popular mode of theatrical procedure, the farce was followed by a tragedy.

Before lying down to rest, the fire was drawn together, fresh logs were heaped upon it, and a great blaze was made to scare away the wolves. Frank, Jeffson, and Douglas, then rolled themselves in their blankets, and lay down with their feet towards the fire and their rifles beside them. The others lighted their pipes for a finishing whiff—a nightcap as Joe styled it.

They had not sat long thus, making occasional quiet remarks, as fatigued and sleepy men are wont to do before going to rest, when they were startled by the sound of heavy footsteps in the woods. Rance, whose duty it was to keep watch the first part of the night, instantly leaped up and cocked his rifle, while the sleepers awoke, raised themselves on their elbows, and looked about somewhat bewildered.

Before any one had time to act or speak, a man, clad in the flannel shirt, heavy boots, etcetera, of a miner, strode into the circle of light, with the air of one whose intentions are peaceful.

“Evening, strangers,” he said, looking round and setting the butt of a long rifle on the ground; “I’ve got lost. You’ll not object to let me rest a bit by your fire, I daresay—hallo!”

The latter exclamation was uttered when the stranger’s eyes fell on Bradling, who was gazing at him with the expression of a man who had seen a ghost. At the same time the stranger threw forward his rifle, and his countenance became unusually pale.

For two seconds each looked at the other in profound silence, which was only broken by the sharp click of the lock as the stranger cocked his piece.

Like a flash of lightning Bradling plucked a revolver from his belt, pointed full at the man’s breast and fired. He fell without uttering a cry, and his rifle exploded as he went down, but the ball passed harmlessly over the heads of the party.

For a few seconds the travellers stood as if paralysed, and Bradling himself remained motionless, gazing sullenly on his victim. Then Frank Allfrey leaped upon him, and grasping him by the throat wrenched the pistol out of his hand.

“Murderer!” he exclaimed, tightening his hold, as Bradling struggled to release himself.

“I’m no murderer,” gasped Bradling; “you saw as well as I did that the fellow threatened to shoot me. Besides, he is not dead.”

“That’s true,” said Joe Graddy, turning towards the fallen man, whom Rance and some of the others were examining, and who had showed some symptoms of returning consciousness; “but his wound is a bad one, and if you ain’t a murderer yet, pr’aps it won’t be long afore ye are one.”

Hearing this Frank flung Bradling violently off, and turned to examine the wounded man. As he did so the other pointed his pistol deliberately at Frank's back, fired, and then sprang into the woods. Before he had quite disappeared, however, each man who could seize his gun or pistol in time fired a shot after him, but apparently without effect, for although they examined the bushes carefully afterwards no marks of blood could be found.

Fortunately the miscreant missed Frank, yet so narrowly that the ball had touched his hair as it whistled past his ear.

The wounded man was as carefully tended as was possible in the circumstances, but neither on that night nor the following day did he recover sufficiently to be able to give any account of himself. He was left at the first "ranch" they came to next day, with directions from Frank that he should be cared for and sent back to Sacramento city as soon as possible. Our hero was unable of course to pay his expenses, but he and all the party contributed a small sum, which, with the gold found on the stranger's person, was sufficient to satisfy the ranchero, who appeared to be a more amiable man than the rest of his class. To secure as far as possible the faithful performance of his duty, Frank earnestly assured him that if he was attentive to the man he would give him something additional on his return from the diggings.

"That's very good of you, sir," said the ranchero with a peculiar smile, "but I wouldn't promise too much if I were you. Mayhap you won't be able to fulfil it. All gold-diggers don't make fortunes."

"Perhaps not," said Frank; "but few of them, I believe, fail to make enough to pay off their debts."

"H'm, except those who die," said the ranchero.

"Well, but I am not going to die," said Frank with a smile.

"I hope not. All the young and strong ones seem to think as you do when they go up; but I have lived here, off an' on, since the first rush

and all I can say is that I have seen a lot more men go up to the diggin's than ever I saw come down from 'em; and, of those who did return, more were poor than rich, while very few of 'em looked either as stout or as cheerful as they did when passing up."

"Come, shut up your potato-trap, old man, and don't try to take the heart out of us all in that fashion," said Jeffson; "but let's have a feed of the best you have in the house, for we're all alive and kicking as yet, anyhow, and not too poor to pay our way; and, I say, let's have some home-brewed beer if you can, because we've got a German with us, and a haggis also for our Scotchman."

"You have forgotten roast-beef for the Englishman," said Frank, laughing.

"I daresay you won't want sauce," observed the host with an air of simplicity; "my meat never seems to want it when there's a Yankee in the room."

Saying this the worthy ranchero went to work, and speedily supplied the travellers with a meal consisting of hard biscuit and rancid pork, with a glass of bitter brandy to wash it down; for which he charged them the sum of eight shillings a head.

Chapter Five.

The Travellers meet with Indians, and are led to wish that they had not gone seeking for Gold.

It was the evening of a hot sultry day, when our travellers, fatigued and foot-sore, arrived at the entrance of a small valley not far distant from the intended scene of their future operations. Here they determined to encamp for the night on the margin of a small stream, where there was grass for the mule and shelter under the trees for the men. On making their way, however, to the place, they observed an Indian village down on a plain below, and, being uncertain as to

the numbers or the temper of the natives, they were about to cross the stream and continue their journey a little further, when a party of six Indians suddenly made their appearance in front, and advanced fearlessly, making signs of friendship.

It was found that they understood and could talk a little Spanish, which Rance spoke fluently. After a short conversation, the guide thought that it would be quite safe to stay beside them. The encampment therefore was made, and supper prepared.

While this was in progress Frank and Joe went to the top of a neighbouring mound to survey the village. It was a curious residence for human beings. Joe's remark that it resembled "a colony of big moles" was not inappropriate, for the huts, of which there were about forty, were not unlike huge mole-hills.

These huts, it was found, they formed by excavating circular holes in the earth, about twelve feet in diameter and four feet deep, then bending over these a number of stout saplings, which they bound together with tendrils of the vine, they formed a dome-shaped roof, which was plastered with a thick coat of clay. An opening in one side of each formed a door, through which entrance could be made by creeping. On the roofs of these curious dwellings many of the natives were seated, evidently awaiting the result of the deputation's conference with the white men.

The main object that the Indians appeared to have in view was the obtaining of fire-arms, and it was observed that they cast longing eyes upon the rifles which leaned on the trees beside the fire. Rance therefore advised every man to look carefully after his weapons, while he talked with the chief, and told him that he had no guns or ammunition to spare. In order to please him, however, he gave him an old rusty carbine, which was bent in the barrel, and nearly useless, in exchange for a few fresh fish.

"My white brother is liberal," said the delighted savage in bad Spanish, as he surveyed the weapon with admiration, "but it is necessary to have black powder and balls."

“I have none to spare,” replied Rance, “but the settlements of the white men are not far off. Besides, the Indian chief is wise. He does not require to be told that white men come here continually, searching for gold, and that they bring much powder and ball with them. Let gold be offered, and both may be obtained.”

The chief took this remark for a hint, and at once offered some gold-dust in exchange for powder and shot, but Rance shook his head, knowing that, if obtained, the ammunition would in all probability be used against himself. The chief was therefore obliged to rest content in the mean time with the harmless weapon.

Meanwhile, another party of seven or eight Indians had gone towards Frank and Joe, and by signs made them to understand that there was something worth shooting on the other side of a cliff not fifty yards off. Our hero and his nautical friend were both of unsuspicious natures, and being much amused by the ludicrous gesticulations of the savages in their efforts to enlighten them, as well as curious to ascertain what it could be that was on the other side of the cliff, they accompanied them in that direction.

The moment they had passed out of sight of the camp a powerful savage leaped on Frank from behind, and, grasping him round the throat with both arms, endeavoured to throw him, while another Indian wrenched the rifle out of his hand. At the same moment Joe Graddy was similarly seized. The savages had, however, underrated the strength of their antagonists. Frank stooped violently forward, almost to the ground, and hurled the Indian completely over his head. At the same time he drew a revolver from his belt, fired at and wounded the other Indian, who dropped the rifle, and doubled like a hare into the bushes. The others fled right and left, as Frank sprang forward and recovered his weapon—all save the one whose unhappy lot it had been to assault Joe Graddy, and who was undergoing rapid strangulation, when Frank ran to his rescue.

“Have mercy on him, Joe!” he cried.

“Marcy! why should I have marcy on such a dirty—lie still, then,” said Joe sternly, as he pressed his knee deeper into the pit of the Indian’s stomach, and compressed his throat with both hands until his tongue protruded, and both eyes seemed about to start from their sockets.

“Come, come, Joe; you volunteered to be my servant, so you are bound to obey me.”

Saying this, Frank seized the angry tar by the collar, and dragged him forcibly off his victim, who, after a gasp or two, rose and limped away.

“He has got quite enough,” continued Frank, “to keep you vividly in his remembrance for the rest of his life, so we must hasten to the camp, for I fear that the Indians won’t remain friendly after this unfortunate affair.”

Grunting out his dissatisfaction pretty freely, Joe accompanied his friend to the camp-fire, where their comrades were found in a state of great alarm about their safety. They had heard the shots and shouts, and were on the point of hastening to the rescue. The chief and his companions, meanwhile, were making earnest protestations that no evil was intended.

When Frank and Joe appeared, Rance turned angrily on the chief, and ordered him and his men to quit the camp instantly. This they hesitated to do for a little, and the chief made fresh efforts to calm the irritated guide, but Rance knew that he had to deal with treacherous men, and repeated his order to be off at the same time throwing forward his rifle in a threatening manner. Whereupon the chief flew into a violent rage, and, after using a good deal of abusive language, returned to his village, where he immediately summoned a council of war, and, by his violent gesticulations and frequent looking and pointing towards the camp, left no doubt on the minds of the travellers as to his intentions.

Rance therefore made the best preparations possible in the circumstances to repel an attack.

Their position was very critical, for the Indians numbered about a hundred men, while their own party consisted only of six. But they had the one great advantage over their enemies—the possession of fire-arms, and felt much confidence in consequence.

“Get out all your weapons, big and little,” said Rance, as he loaded his rifle, “and fire ’em off to begin with. It will show them that we are well prepared.”

Accordingly they commenced letting off their pieces, and what with rifles, double shot-guns, double and single barrellled pistols, and revolvers, they made up the formidable number of fifty-three discharges, which had a very warlike effect when fired in quick and regular succession.

Carrying these in their hands, and disposed round their persons, intermixed with short swords and long bowie-knives, the whole party mounted guard, bristling like human hedge-hogs, and, placed at equal intervals on each side of the camp, marched about for an hour or two, without seeing or hearing anything more of their enemies.

At last their mule became a little restive, putting them on the alert, and shortly afterwards an arrow whizzed past Joe’s ear. He instantly presented his carbine in the direction whence it came, and fired. The shot was answered by a perfect shower of arrows, which pierced the clothes of some of the white men, and slightly wounded Douglas in the left arm, but fortunately did no further damage. The discharge was followed by a quick movement in the bushes, rendered audible by the crushing of dried leaves and breaking of branches. This guided the whites in their aim, and a volley was poured into the bush, followed by several random shots from revolvers.

Soon after all noise was hushed, and a brief examination of the surrounding bushes was made, but it could not be ascertained that any damage had been done to the Indians, who always make it a point, when possible, to carry off their dead to prevent their being scalped—a dishonour they fear almost as much as death.

“Now, one half of us may sleep,” said Rance, when the party was again collected round the fire.

“Sleep!” exclaimed Frank.

“Ay, there’s nothing more to fear from the rascals to-night, if we keep a good look-out—and that may be done as effectively by three of us as by six. If we each get a wink of an hour or two, we shall be quite fit to travel or to fight in the morning. So let me advise you to lose no time about it.—Not badly hurt, sir, I hope?” he added, addressing Douglas.

“Nothing to speak of,” answered the Scot, “only a graze of the skin.”

“Well, get away to rest. You can take the second watch, and it is not likely they will disturb you before morning. If they do, you won’t require to be called, so keep your weapons handy.”

As Rance prophesied, so it turned out. The Indians had got an unexpectedly severe repulse, and did not attempt to interfere with the travellers during the night, but in the morning they were found to have posted themselves on the opposite banks of the stream, evidently with the intention of disputing the further progress of the party.

Nothing now but prompt determination could save them from being cut off by overwhelming numbers, for if they were to hesitate, or waver in the least, the Indians would be encouraged to make an attack. They therefore calmly and deliberately blew up the fire, boiled their kettle and had breakfast, after which the mule was loaded, and the party prepared to cross the stream.

Before doing so, however, Rance and Jeffson, being the best marksmen, advanced to the edge of the bank with two of the largest rifles and took aim at the Indians, hoping by that means to frighten them away without being obliged to shed more blood. In this they failed, for, the distance being fully five hundred yards, the natives evidently believed that it was impossible for a ball to tell at such a

distance. On seeing Rance point his rifle at them they set up a yell of derision. There was nothing for it, therefore, but to fire. This Rance did, and one of the Indians fell. Jeffson also fired and hit the chief, who reeled, but did not fall. The savages immediately began a hurried retreat, and the travellers refrained from firing, in order to convince them that all they desired was to be allowed to go on their way unmolested.

The crossing of the stream was then effected. On mounting the opposite bank it was found that the Indians had taken up their position, fully armed, on the top of their huts, with an air of quiet resolution that showed they apprehended an attack, and were prepared to defend their homes to the death.

This, however, they were not called upon to do, for the travellers turned off to the right, and pursued their way as if nothing had happened. But two of the Indians had been badly hit, perhaps killed, and the thought of this dwelt much on the minds of Frank and his friend Joe all that day. Another thing that distressed them much was the well-known custom of the natives to take their revenge at the first favourable opportunity. It was a rule among them to take two lives of white men for every redskin killed, and they were known not to be particular as to who the whites might be,—sufficient for them that they were of the offending and hated race. The fact that the innocent might thus suffer for the guilty was to them a matter of perfect indifference.

The route over which the whites travelled that day chanced to be unusually picturesque and beautiful. The path, or “trail,”—for there was scarcely anything worthy the name of path,—wound through a sycamore and white-oak grove that fringed the river, the sloping banks of which were covered with an infinite variety of shrubs and evergreens, bearing flowers and blossoms of most delicate beauty and exquisite fragrance, amidst which tangled festoons of the indigenous vine drooped with pendant bunches of purple grapes. Arbutus shrubs of immense size were seen, and the landscape was in some places interspersed thickly with manzanita rushes, the

crimson berries of which are much in favour with the Indians, also with the grizzly bear! Some of the plains they crossed were studded with magnificent oaks, devoid of underwood, such as one is accustomed to see in noblemen's parks in England.

But all this beauty and luxuriance made comparatively little impression on Frank and Joe, for they could not forget that human life had probably been sacrificed that day—a thought which filled them with sincere regret that it had ever entered into their hearts to go digging for gold.

Chapter Six.

Arrival at the Gold-Fields, and Lessons in Gold-Washing received.

At last Bigbear Gully was reached, and our travellers—especially those of them who, being new to the work, were all enthusiasm—pressed eagerly forward, anxious to begin without delay.

Bigbear Gully—so named because of a huge grizzly bear that had been shot there at the commencement of digging operations—was a wild and somewhat gloomy but picturesque mountain gorge, the first sight of which, with its lights and shadows, stupendous cliffs and clumps of wood clinging to the hill-sides, called forth a burst of delight and admiration from Frank Allfrey, whose mind at once leaped with loving desire to the brush and the colour-box; but as these implements were at that time packed among the baggage on the mule's back, and as the love of art was not sufficiently strong in the guide to induce him to permit of a moment's delay in the journey, our hero was fain to content himself with visions of future indulgence in his favourite study.

The “diggings,” which they first got sight of in the afternoon of a fine and sunny but cool day, were at the mouth of a deep gorge at the lower end of the gully, having an abrupt mountain acclivity about

eight hundred feet high on one side, and on the other a plain bounded by mountains. Here numbers of tents of all sizes and various shapes were pitched on the slopes and near the banks of the river that brawled down the centre of the little valley.

No sooner had the travellers entered the camp than the diggers left their work and flocked round them to ask the news, and, more particularly, to ascertain what provisions had been brought to the valley,—for the necessaries of life at that time were getting scarce, and the party from which Frank and his companions had separated, strange to say, had not arrived.

Great anxiety was manifested by the diggers on hearing of this separation, because on the safe and speedy arrival of that party they depended almost for their existence, and deep as well as loud were the expressions of disappointment and discontent when they were told that, if all had gone well, they should have been at the gully some days before.

Soon, however, the diggers had exhausted their queries and returned to their work, leaving the new arrivals to look after their own affairs. This they proceeded to do promptly.

“Now, friends,” said Jeffson, “our journeying together has come to an end, and it remains for you to settle whether you shall keep together and work in company, or separate. As for me, my business compels me to leave you. Yonder white tent, which you see about half a mile up the river, belongs to me and my partner. It is the great economico-universal store of Jeffson and Company, which supplies diggers liberally on the most moderate terms, giving credit as long as it seems advisable to do so. When Jeffson is absent, Company takes charge of the concern, and it is my opinion that Company will be kind o’ glad to-night to see the head of the firm come back safe and sound with fresh supplies. You see, gentlemen, I feel it sort of incumbent on me to make you a farewell speech as a fellow-traveller, because I mean to become a host for to-night, and ask you to come up to the store and partake of our hospitality. I am quite sure that you will acquit me of the unworthy motive of wishing to attract

you as customers, when I tell you that I am already certain of your custom, seeing that there is no other store in the gully, and I guess you won't be inclined to go down to Sacramento for supplies for some time to come."

There was a general laugh at this, followed by a hearty expression of thanks from all the party, who forthwith adjourned to the store, where they found "Company" (who was an Irishman named Quin) barely able to keep his legs, in consequence of a violent attack of dysentery which had reduced him to a mere shadow. The poor man could scarcely refrain from shedding tears of joy at the sight of his partner, who, to do him justice, was almost as much affected by sorrow at the miserable appearance presented by his friend.

"Sure it's dead I am intirely—all but," said Quin, as he wrung Jeffson's hand again and again; "if ye'd bin a day later it's my belaiif I'd have gone under the sod."

"Well, you do look like it, Quin," said Jeffson, stepping back to take a more critical view of him. "What on airth pulled all the flesh off yer bones in this fashion?"

"Sickness, no less. Faix, there's more than me is in the same fix. Jim Dander, down at the cross creek, has got so thin that it's of no manner o' use looking at him sideways, he's not quite visible till he turns his flat front to ye. And Foxey is all but gone; and there's many a man besides as is on the road to the grave, if not there already. Sure, the doctor's the only man that makes money now, though he kills more than he cures. The baste called to try his hand on mysilf, but I flung my big boots at his head, an' saw no more of him."

"That's a bad account of things," said Jeffson; "however, here I am back again with fresh supplies, so cheer up, man, and we'll weather the storm yet. I've brought some fellow-travellers, you see, and hope you will receive them hospitably."

"That must not be," said Frank Allfrey, advancing, "it would be unfair to put your friend to unnecessary trouble considering the state of

weakness to which—”

“Waikness, is it?” exclaimed Quin, seizing Frank’s hand and shaking it; “well, now, it’s little I thought I’d iver live to be called waik! Howsever, it’s too thrue, but me moral strength is wonderful, so you’re heartily welcome, if ye can slaip on a plank floor an’ ait salt-pork an’ paise. There, now, don’t be botherin’ a sick man wid yer assurances. Just make yerselves at home, gintlemen, an’ the head o’ the firm will git yer supper ready.”

Saying this, the poor man, who was quite worn out with excitement and the exertion of welcoming his partner, flung himself on his couch with a deep sigh. As Jeffson also pressed his friends to remain, they made no further objection.

While supper was being prepared, Frank and Joe went out to look at the diggers.

“Now,” said the former as they sauntered along the bank of the river, “the question that you and I must settle at once is, are we two to work by ourselves, or are we to join with our late friends, and work in company?”

“Jine ’em, say I,” replied Joe. “I’m fond of Meyer, and I like the Scotchman too, though he is rather fond of argification; besides, it strikes me that from what we have heard of diggers’ ways, we shall be the better of being a strong party.”

“Four men don’t form a very strong party, Joe; however, I agree with you. It would be well that we four should stick together. So, that’s settled, and now we shall go and ask yonder fellow in the red shirt and big boots something about our prospects.”

The scene in the midst of which they now found themselves was curious, interesting, and suggestive. For two miles along its course the banks of the river were studded with tents, and on each side of it were diggers, working at short distances apart, or congregated together, according to the richness of the deposits. About twenty feet

was the space generally allowed at that time to a washing machine. Most of the diggers worked close to the banks of the stream, others partially diverted its course to get at its bed, which was considered the richest soil. At one place a company of eighty men had banded together for the purpose of cutting a fresh channel for the river—a proceeding which afterwards resulted in a fierce and fatal affray with the men who worked below them. Elsewhere on the sides of the mountains and in “gulches” formed by torrents, men toiled singly and in twos or threes, with picks, shovels, washing-pans, and cradles. All were very busy, but all were not equally hopeful, for, while some had been successful in finding the precious metal, others had failed, and were very desponding.

“Have you had good fortune to-day?” asked Frank, stopping at the edge of the hole in which the miner with the red shirt toiled.

“Not very good,” replied the man, whose voice betokened him an Englishman.

He was an immensely powerful, good-looking fellow, and paused in his work to reply to Frank’s question with a hearty air.

“Have you to dig very deep?” inquired Frank.

“Not very,” he replied; “the depth varies in different parts of the diggings. Here it is seldom necessary to go deeper than four feet. Indeed, a white rock usually lays about the depth of two feet under the soil. It is difficult to cut through, and does not pay for the trouble.”

“Do you find gold on the surface?” continued Frank.

“Almost none. Being weighty, it sinks downwards through the loose earth, and settles on the rock. I see, gentlemen, that you are strangers, and, if I mistake not, Englishmen. I am a countryman, hailing from Cornwall, and, if you have no objection, will accompany you in your inspection of the diggings. My experience may be of service to you, perhaps, and I can at all events guard you from the

scoundrels who make a livelihood by deceiving and cheating newcomers.”

Frank thanked the Cornish miner for his kind offer, and accompanied by this new and intelligent friend, he and Joe continued their ramble.

One of the first men whom they addressed happened to be one of the sharpers referred to. He was a Yankee, and although the Yankees were by no means the *only* scoundrels there, for there was no lack of such—English, Scotch, Irish, German, and Chinese—they were unquestionably the “cutest!”

This man was very busy when they approached, and appeared to be quite indifferent to them. Observing, however, that they were about to pass by, he looked up, and, wiping his brow, said, “Good-evening.”

“Good-evening,” said Frank, “What luck?”

“Luck enough,” replied the man, “I’m tired of luck; the fact is, I have made my pile, and want to make tracks for home, but this is such a splendid claim that I can’t tear myself away from it. See here.”

He struck his shovel into the ground as he spoke, and lifted a quantity of earth, or “dirt,” into a basin, washed it out, and displayed to the astonished gaze of the “greenhorns,” as newcomers were called, a large quantity of gold-dust, with several small nuggets interspersed.

“Splendid!” exclaimed Frank.

“You’ll make your fortin,” said Joe Graddy.

“It’s made already, I reckon,” said the Yankee, with the air of a man who was overburdened with success. “The truth is, I want to get away before the rainy season comes on, and will part with this here claim for an old song. I’m half inclined to make you a present of it, but I don’t quite see my way to that. However, I’ve no objection to hand it over for, say a hundred dollars.”

“H’m!” ejaculated the Cornish man, “will you take a shovelful from the *other* end of the claim and wash it out?”

The Yankee smiled, put his finger on the side of his nose, and, wishing them success in whatever line of life they chose to undertake, went on with his work.

The Cornish miner laughed, and, as he walked away, explained to his astonished companions that this was a common dodge.

“The rascals,” he said, “hide a little gold in a claim that is valueless, and, digging it up as you have seen, wash it out in the presence of newcomers, in the hope of taking them in. But here we come to a party who will show you a little of legitimate gold-washing.”

They approached, as he spoke, a bend of the river where several men were busy at work—some with pick and shovel, some with the cradle, and others with tin washing-pans. Here they stood for some time watching the process of gold-washing.

At the time of which we write, only the two simple processes of washing, with the pan and with the cradle, were practised at Bigbear Gully, the more elaborate methods of crushing quartz, etcetera, not having been introduced.

The most simple of these was the *pan* process, which was much in favour, because the soil, or “dirt” was so rich in gold-dust that it “paid” well, and it only required that the miner should possess a pick, a shovel, and a tin pan. With this very limited stock in trade he could begin without delay, and earn at least a subsistence; perhaps even make “his pile,” or, in other words, his fortune.

One of the men connected with the party above referred to was engaged in pan-washing. He stood in a hole four feet deep, and had just filled a flat tin dish with dirt, as Frank and his companions stopped to observe him. Pouring water on the dirt, the miner set the pan down, dipped both hands into it and stirred the contents about until they became liquid mud—removing the stones in the process,

and operating in such a manner that he caused some of the contents to escape, or spill, off the top at each revolution. More water was added from time to time, and the process continued until all the earthy matter was washed away, and nothing but a kind of black sand, which contained the gold, left at the bottom. The separation of the metal from the black sand was an after process, and a more difficult one. It was accomplished in some cases by means of a magnet which attracted the sand. In other cases this was blown carefully off from a sheet of paper, but a few of the miners, who managed matters in a more extensive and thorough manner, effected the separation by means of quicksilver. They mixed it with the sand, added a little water, and stirred it about until the gold amalgamated with the quicksilver, converting it into a little massive, tangible, and soft heap. It was then put into a buckskin cloth, through the pores of which the quicksilver was squeezed, leaving the pure gold behind. Any trifling quantity of the former that might still remain was afterwards evaporated on a heated shovel or pan.

An expert worker in average ground could gather and wash a panful of dirt every ten minutes. There were few places in Bigbear Gully that would not yield two shillings' worth of gold to the panful, so that in those early days, while the surface soil was still fresh, a man could, by steady work alone—without incidental nuggets—work out gold-dust to the value of between five and six pounds sterling a day, while, occasionally, he came upon a lump, or nugget, equal, perhaps, to what he could procure by the labour of a week or more.

Many, however, of the more energetic miners worked in companies and used cradles, by means of which they washed out a much larger quantity of gold in shorter time; and in places which did not yield a sufficient return by the pan process to render it worth while working, the cradle owners obtained ample remuneration for their toil.

The cradle, which Frank and his comrades saw working not far from the pan-washer, was by no means a complex affair. It was a semi-circular trough hollowed out of a log six feet long by sixteen inches diameter. At one end of this was a perforated copper or iron plate,

with a rim of iron or wood round it, on which the dirt was thrown, and water poured thereon, by one man, while the cradle was rocked by another. The gold, earth, and small gravel were thus separated from the larger stones, and washed down the trough, in which, at intervals, two tranverse bars were placed; the first of these arrested the gold, which from its great weight sunk to the bottom, while the gravel, and lighter substances, were swept away by the current. The lower bar caught any particles that, by awkward management, might have passed the upper one.

Having satisfied their curiosity, and learned from an obliging miner the method of washing the gold, our adventurers returned to Jeffson's store, and there spent the night in discussing their plan of procedure. It was decided, first of all, that they should stick together and work in company.

"You see, mates," observed Joe Graddy, after the others had given their opinions, "this is how it stands. I must stick by Mister Allfrey, 'cause why, we've bin pullin' in the same boat together for some time past, an' it's nat'ral for to wish to continue so to do. Then Douglas and Meyer ought to stick to us, 'cause we have for so long stuck to them, an' they ought to stick to one another 'cause they're mootooally fond o' misty-physical jabberin' on religious subjects, which is greatly to our edification, seein' that we don't onderstand it, and finds it highly amoosin' while we smoke our pipes after a hard day's work, d'ye see? So, on them grounds, I votes that we j'ine company an' go to work at seven o'clock to-morrow mornin'."

"Das ist goot advise," said the German, slapping Joe on the shoulder, "an' I vould add mine vott, vich is, to make you commandair of de forces."

"Very good, then I command you to shut your mouth, and go to bed."

"Unpossabil," replied Meyer, "for I do snor, an' always do him troo de mout'."

"I prefers to do it through the nose," remarked Joe, rolling his blanket round him and lying down on the hard boards with his head on a sack.

Expressing a hope that they would restrain their snoring propensities as much as possible, the remaining members of the new co-partnery lay down beside them, and were speedily in the land of dreams. Need we add that their dreams that night were of gold? Surely not, and perhaps it were equally unnecessary to observe that their slumbers were profound.

Chapter Seven.

Gives the Result of the First Day's Digging, and shows the Powerful Effect of Lynch-Law.

Next morning Frank and his friends went out to choose their claim. As we have said, the Bigbear Gully was not at that time generally known. A comparatively small number of diggers had set to work in it, and they were careful to avoid giving much information to "prospecting," or searching parties, because they knew that if the richness of the soil were known, there would be a general rush to it from all quarters. There was therefore no lack of unoccupied ground.

A suitable spot was chosen in a pleasant grove on the banks of the stream where it swept round the base of a magnificent precipice, not far from Jeffson's store. Here Douglas, Meyer, and Joe set to work to build a kind of hut of logs, branches, and mud, while Frank returned to the store to purchase the necessary tools. Having little money left, he was compelled to take credit, which Jeffson readily granted to him, knowing full well that there was little fear of the account remaining long unpaid.

In order that the reader may have an idea of the charges made at the diggings in those days, we subjoin the list of purchases made at

the commencement of operations by the firm of “Allfrey, Douglas and Company.”

A rocker or cradle	6 pounds 5 shillings
A spade, shovel, pick-axe, and two tin washing-pans	3 pounds 15 shillings
12 pounds weight of biscuit, 12 pounds weight of salt-pork and beef	
4 pounds weight of lard, and 6 pounds weight of flour	10 pounds 8 shillings
A frying-pan, sauce-pan, and four tin mugs	2 pounds 12 shillings
Sum-Total	23 pounds 0 shillings

When Joe Graddy heard the sum-total he looked very blank indeed, but, quickly recovering himself, insisted that they should leave off house-building, which, in the fine weather, he said, was o’ no manner o’ use, and it was a matter o’ prime importance to go to dig at once, an’ pay off their debt without delay.

Joe was overruled, however, and when it was explained to him that the fine weather might not last long, that it was essential to health that they should have a roof of some sort to keep off the dews, and that digging might be commenced in right earnest on the morrow, he consented to continue his labours at the hut.

That night they slept sounder than usual, and, on the following morning, began to dig for gold.

They commenced within a few feet of the water’s edge. Joe handled the pick and spade; Meyer carried the “dirt” on his broad shoulders to Douglas, who rocked the cradle, while Frank washed out the auriferous matter in one of the tin pans, until nothing but pure gold

and black sand remained. It was reserved for evening to separate the sand from the gold, and ascertain the result of their day's labour.

At noon, in accordance with the universal custom at the mines, they threw down their tools and went up to the hut for an hour's rest and refreshment. Of course they discussed while they dined, and hoped largely! but their jaws were more active than their tongues, and the moment the hour was completed they returned vigorously to work.

When the shades of evening began to descend, they returned to the hut, and, kindling a fire, commenced to fry blacksand and gold, being anxious to ascertain the result of the first day's work before supper! As each panful was dried and blown, the gold was weighed and put into a small white bowl, the bottom of which was soon heaped up with shining particles, varying in size from the smallest visible specks to little lumps like grains of corn.

A neighbouring miner, who had offered to weigh the result for them, pronounced this first day's work as an unusually successful one, being, he said, a little over thirty-six pounds sterling.

"How much?" exclaimed Joe Graddy in amazement.

"Thirty-six pounds sterling," repeated the miner.

"You *don't* mean that?"

"Indeed I do," replied the miner, smiling.

"Then our fortins is made a'ready—all but—"

"Not quite; you forget the price of our outfit," said Frank.

"No doubt, I did," answered the seaman, a little subdued.

"And the price o' grub," added Douglas; "not to mention clothing, which we shall want very soon, I fear, for the tear and wear of this kind of work is considerable. Why, I found to-day, when I took a stroll at noon, that they charge five pounds sterling for a flannel shirt, and

four pounds for a pair of boots, and everything else is in proportion; so, you see, our thirty-six pounds won't do much for us at that rate. However, I admit that we have reason to be satisfied with the day's work."

"You certainly have," said their friend the miner; "for it is very seldom that beginners do so much. And now I would give you one piece of advice before I go, which is, that you appoint one of your number to cook for the rest. More men are killed, I believe, by eating half-cooked victuals, than by hard work. They come in fagged and wet at night, cook their grub hastily, bolt it, and then lie down to sleep in damp clothes. Of course they soon break down. Our party have kept very fair health in the midst of great sickness; and I believe it is chiefly owing to the fact that, on first setting to work, we appointed one of our number, who had a talent that way, to attend to the cooking department. We relieved him of a great deal of the hard labour, but gave him his equal share of the profits. The consequence has been that we are all in first-rate health, and dig more energetically than our neighbours."

"Has there then been much sickness here of late?" asked Frank.

"A great deal, and I fear there will be much more when the rains set in; but let me urge you again to take my advice about appointing a cook."

"That," said Joe Graddy, "is just wot we means to do, Mister wot's-yer-name?"

"Stewart," said the miner.

"Well, Mister Stewart, I'll ap'int myself cook to our party, havin', if I may say so, a nat'ral talent that way, w'ich was deweloped on my first voyage round the world, w'en our cook died of a broken heart—so it's said—'cause the doctor knocked off his grog, and put him on an allowance o' lime juice."

Saying this, Joe heaved a deep sigh, seized the frying-pan, and commenced his self-imposed duties. Our hero took up the bowl of gold-dust, and was about to leave the hut, when Douglas arrested him with—

“Hallo, Frank, where away? I shall have to shout ‘stop thief’ if you go off like that with the gold.”

“I’m going to pay our debt to Jeffson,” said Frank, with a laugh. “I have great belief, Douglas, in the plan of paying as one goes. Debt is a heavy weight, which I never mean to carry if I can help it. A good old aunt of mine used often to din into everybody’s ears the text ‘owe no man anything,’ and I really believe she has caused it to take a strong hold of me, for I can’t rest till I square off Jeffson’s account!”

Frank hastened away, and soon after returned with the balance, thirteen pounds, which, as Douglas observed when they began supper, was the nucleus of their future fortune; while Joe remarked that “he didn’t know wot nooklius wos, but if it meant the *beginnin*’ of their fortin, it wasn’t a big un, as things went at the diggin’s.”

The proceeds of the next day’s work were nearly equal to those of the first, and the spirits of the diggers were proportionally high; but on the third day they did not wash out much more than half the quantity of gold. They were therefore somewhat depressed; and this condition of mind was increased by one of those events which were at times of frequent occurrence there. This was the murder of one miner by another, and the summary application of Lynch-law to the criminal.

It occurred about noon, when the miners were at dinner. A man named Higson, who was noted for swearing and brutality, was standing near Jeffson’s store, when a young miner named Elms came up, greatly excited, in consequence of having just found a large nugget, which he wished to have weighed. To the surprise of all, and the indignation of Elms, Higson suddenly snatched the nugget out of his hand, and swore that it had been got in a claim to

which Elms had no title, and that, being alongside of his own, and included in the line he had marked off, the nugget was his by rights!

The young man sprang upon Higson, and a struggle ensued, in the midst of which the latter drew his bowie-knife and stabbed Elms to the heart. When he fell, Higson attempted to run, but a stout German tripped up his heels, and a cry of wild anger arose from those who had witnessed the deed.

“Lynch him!” they shouted furiously.

Frank Allfrey and his friends heard the shout, and ran to the spot; but the administration of justice was so prompt that, before they reached it, the murderer was swinging by the neck to the branch of a tree.

“Surely you have been too hasty,” exclaimed Frank, advancing without any settled intention, but under an indefinable sense that wrong was being done.

At this several miners leaped forward, and drawing their revolvers, swore with a terrible oath that they would shoot any man who should attempt to cut the murderer down.

As one of the miners here explained hastily why it was that justice had been meted out with such promptitude, our hero drew back and left the spot, feeling, however, that Judge Lynch was a very dangerous character, seeing that he might be just as prompt with the innocent as with the guilty, although he would find it rather difficult to recall life if he should find out afterwards that he had been mistaken in his views.

This event was followed two days after by another incident, which caused considerable excitement in Bigbear Gully. With the increase of miners there had been a considerable increase of crime, as might naturally have been expected in a country where, while there were undoubtedly many honest men, there were also thousands of scoundrels of all nations who had been attracted thither by the dazzling accounts given of the new El Dorado in the West. Rows,

more or less severe, in reference to claims and boundaries, had become frequent. Cold-blooded murders were on the increase; and thefts became so common that a general sense of insecurity began to be felt.

This state of things at last wrought its own cure. One day a youth went into the hut of a neighbouring digger, a Yankee, and stole a coffee-tin. He was taken in the act, and as this was the second time that he had been caught purloining his neighbours' goods, those in the vicinity rose up *en masse* in a furore of indignation. A hurried meeting of all the miners was called, and it was unanimously resolved—at least so unanimously that those who dissented thought it advisable to be silent—that Lynch-law should be rigorously put in force.

Accordingly, several of the most energetic and violent of the miners constituted themselves judges on the spot, and, on hearing a brief statement of the case, decreed that the culprit was to be subjected to whatever punishment should be determined on by the man whom he had injured. The Yankee at once decided that the rims of his ears should be cut off, and that he should be seared deeply in the cheek with a red-hot iron; which sentence was carried into execution on the spot!

It happened that while this was going on, another of the thieving fraternity, who did not know of the storm that was gathering and about to burst over the heads of such as he, took advantage of the excitement to enter a tent, and abstract therefrom a bag of gold worth several hundred pounds. It chanced that the owner of it happened to be ailing slightly that day, and, instead of following his companions, had lain still in his tent, rolled up in blankets. He was awakened by the thief, sprang up and collared him, and, observing what he was about, dragged him before the tribunal which was still sitting in deliberation on the affairs of the community. The man was instantly condemned to be shot, and this was done at once—several of the exasperated judges assisting the firing party to carry the sentence into execution.

“Now men,” cried a tall raw-boned Yankee from the Western States, mounting on a stump after the body had been removed, and speaking with tremendous vehemence, “I guess things have come to such a deadlock here that it’s time for honest men to carry things with a high hand, so I opine we had better set about it and make a few laws,—an’ if you have no objections, I’ll lay down a lot o’ them slick off—bran’ new laws, warranted to work well, and stand wear and tear, and ready greased for action.”

“Hear! hear!” cried several voices in the crowd that surrounded this western Solon, while others laughed at his impudence. All, however, were eager to see the prevailing state of things put right, and glad to back any one who appeared able and willing to act with vigour.

“Wall then, here goes,” cried the Yankee. “Let it be decreed that whatever critter shall be nabbed in the act of makin’ tracks with what isn’t his’n, shall have his ears cut off, if it’s a mild case, and be hanged or shot if it’s a bad un.”

A hearty and stern assent was at once given to this law, and the law-giver went on to lay down others. He said that of course murder would be punished also with death, and for several other offences men should be flogged or branded on the cheeks with red-hot irons. Having in little more than ten minutes laid down these points, he enacted that thenceforth each man should be entitled to a claim of ten feet square, which, being multiplied by the number of his mess, would give the limits of the allotments in particular locations; but that, he said, would not prevent any man from moving from one site and fixing on another.

To this proposition, however, some of the miners demurred, and the law-giver found that, although in criminal law he had been allowed to have it all his own way, in civil matters he must listen to the opinion of others. However, after much wrangling this law was agreed to; and it was also arranged, among other things, that as long as any one left his tools in his claim, his rights were to be respected.

This meeting had the most beneficial influence on the miners. Rough and ready, as well as harsh, though their proceedings were, they accomplished the end in view most effectually, for after several terrible examples had been made, which proved to evil-doers that men were thoroughly in earnest, stealing, quarrelling about boundaries, and murdering were seldom heard of in that district—insomuch that men could leave bags of gold in their tents unwatched for days together, and their tools quite open in their claims without the slightest fear of their being touched!

The reader must not suppose here that we are either upholding or defending the proceedings of the celebrated Judge Lynch. We are merely recording facts, which prove how efficacious his severe code was in bringing order out of confusion in Bigbear Gully at that time.

It is not necessary that we should follow the varied fortunes of our hero and his friends, day by day, while they were engaged in digging for gold. Suffice it to say that sometimes they were fortunate, sometimes the reverse, but that on the whole, they were successful beyond the average of diggers, and became sanguine of making their fortunes in a short time.

Nevertheless Frank Allfrey did not like the life. Whatever else might arouse his ambition, he was evidently not one of those whose soul was set upon the acquisition of wealth. Although successful as a digger, and with more gold in his possession than he knew what to do with, he detested the dirty, laborious work of digging and dabbling in mud from morning till night. He began to see that, as far as the nature of his daily toil was concerned, he worked harder, and was worse off than the poorest navvy who did the dirtiest work in old England! He sighed for more congenial employment, meditated much over the subject, and finally resolved to give up gold-digging.

Before, however, he could carry this resolve into effect, he was smitten with a dire disease, and in a few days lay on the damp floor of his poor hut, as weak and helpless as a little child.

Chapter Eight.

Frank and Joe take to Wandering; See some Wonderful Things, and have a Narrow Escape.

Before our hero became convalescent, his comrade Douglas was “laid down” with dysentery. In these circumstances, the digging went on slowly, for much of the time of Meyer and Graddy was necessarily occupied in nursing—and truly kind and devoted, though rough, nurses they proved to be in that hour of need.

Gradually, but surely, Douglas sank. There was no doctor to prescribe for him, no medicine to be had for love or money. In that wretched hut he lay beside his sick friend, and conversed, as strength permitted, in faint low tones, on the folly of having thrown his life away for “mere gold,” and on the importance of the things that concern the soul. As he drew near his end, the name of the Saviour was often on his lips, and often did he reproach himself for having neglected the “great salvation,” until it was *almost* too late. Sometimes he spoke of home—in Scotland,—and gave many messages to Frank, which he begged him to deliver to his mother, if he should ever get well and live to return home.

There was something in that “if” which went with a thrill to Frank’s heart, as he lay there, and realised vividly that his comrade was actually dying, and that he too might die.

One evening Joe entered the hut with more alacrity than he had done for many a day. He had a large nugget, just dug up, in his hand, and had hastened to his companions to cheer them, if possible, with a sight of it. Douglas was just passing away. He heard his comrade’s hearty remarks, and looked upon the mass of precious metal.

“Joe,” he whispered faintly, “Wisdom is more to be desired than gold; ‘The fear of the Lord is the beginning of wisdom.’”

He never spoke again, and died within an hour after that.

At last Frank began to mend, and soon found himself strong enough to travel, he therefore made arrangements to leave Bigbear Gully with his inseparable friend Joe. Meyer, being a very strong man, and in robust health, determined to remain and work out their claim, which still yielded abundance of gold.

“Meyer,” said Frank, the evening before his departure, “I’m very sorry that we are obliged to leave you.”

“Ya, das ist mos’ miserable,” said the poor German, looking disconsolate.

“But you see,” continued Frank, “that my remaining, in my present state of health, is out of the question. Now, Joe and I have been talking over our affairs. We intend to purchase three mules and set off under the guidance of a half-caste Californian, to visit different parts of this country. We will continue our journey as long as our gold lasts, and then return to San Francisco and take passage for England,—for we have both come to the unalterable determination that we won’t try to make our fortunes by gold-digging. We have sufficient dust to give us a long trip and pay our passage to England, without making use of that big nugget found by Joe, which is worth at least 200 pounds; so we have determined to leave it in possession of Jeffson, to be used by you if luck should ever take a wrong turn—as it will sometimes do—and you should chance to get into difficulties. Of course if you continue prosperous, we will reclaim our share of it on our return hither.”

“Ah, you is too goot,” cried the warm-hearted German, seizing Frank’s hand and wringing it, “bot I vill nevair use de nuggut—nevair! You sall find him here sartainly ven you do com bak.”

“Well, I hope so, for your own sake,” said Frank, “because that will show you have been successful. But if you get into low water, and do not use it, believe me I shall feel very much aggrieved.”

Next day about noon, our hero and Joe, with Junk, their vaquero, mounted their mules and rode away.

"A new style o' cruisin' this," said Joe Graddy, one fine day, as they pulled up under the shade of a large tree, at a spot where the scenery was so magnificent that Frank resolved to rest and sketch it.

"New, indeed, and splendid too," he exclaimed enthusiastically, leaping off his mule. "You can go shoot squirrels or bears if you like, Joe, but here I remain for the next three or four hours."

As Frank had been in the habit of treating his friend thus almost every day since starting on their tour, he was quite prepared for it; smiled knowingly, ordered the vaquero to tether the mules and accompany him into the forest, and then, taking his bearings with a small pocket-compass, and critically inspecting the sun, and a huge pinchbeck watch which was the faithful companion of his wanderings, he shouldered his gun and went off, leaving the enthusiastic painter to revel in the glories of the landscape.

And truly magnificent the scenery was. They had wandered by that time far from the diggings, and were involved in all the grandeur of the primeval wilderness. Stupendous mountains, capped with snow, surrounded the beautiful valley through which they were travelling, and herbage of the richest description clothed the ground, while some of the trees were so large that many of the giant oaks of old England would have appeared small beside them. Some of the precipices of the valley were fully three thousand feet high, without a break from top to bottom, and the mountain-ranges in the background must have been at least as high again. Large tracts of the low grounds were covered with wild oats and rich grasses; affording excellent pasturage to the deer, which could be seen roving about in herds. Lakes of various sizes were alive with waterfowl, whose shrill and plaintive cries filled the air with wild melody. A noble river coursed throughout the entire length of the valley, and its banks were clothed with oaks, cypresses, and chestnuts, while, up on the mountain sides, firs of truly gigantic size reared their straight stems above the surrounding trees with an air of towering magnificence,

which gave them indisputable right to be considered the aristocracy of those grand solitudes.

Of these firs Frank observed one so magnificent that, although anxious to begin work without delay, he could not resist the desire to examine it closely. Laying down his book and pencil he ran towards it, and stood for some time in silent amazement, feeling that he was indeed in the presence of the Queen of the Forest. It was a pine which towered to a height of certainly not less than three hundred and sixty feet, and, after careful measurement, was found to be ninety-three feet in circumference. In regarding this tree as the Queen, Frank was doubly correct, for the natives styled it the "Mother of the Forest." The bark of it, to the height of a hundred and sixteen feet, was, in after years, carried to England, and built up in its original form in the Crystal Palace of Sydenham. It was unfortunately destroyed in the great fire which a few years ago consumed a large part of that magnificent building.

But this was not the only wonderful sight that was seen that day. After Frank had finished his drawing, and added it to a portfolio which was already well filled, he fired a shot to recall his nautical comrade and the vaquero. They soon rejoined him, and, continuing their journey, came to a waterfall which, in some respects, excelled that of the far-famed Niagara itself.

It had sounded like murmuring thunder in their ears the greater part of that day, and as they approached it the voice of its roar became so deafening that they were prepared for something unusually grand, but not for the stupendous sight and sound that burst upon them when, on turning round the base of a towering precipice, they came suddenly in full view of one of the most wonderful of the Creator's works in that land.

A succession of wall-like mountains rose in two tiers before them into the clouds. Some of the lower clouds floated far below the highest peaks. From the summit of the highest range, a river, equal to the Thames at Richmond, dropt sheer down a precipice of more than two thousand feet. Here it met the summit of the lower mountain-

range, on which it burst with a deep-toned sullen roar, comparable only to eternal thunder. A white cloud of spray received the falling river in its soft embrace, and sent it forth again, turbulent and foam-bespeckled, towards its second leap,—another thousand feet,—into the plain below. The entire height of this fall was above three thousand feet!

Our hero was of course anxious to make a careful drawing of it, but having already exhausted the greater part of the day, he was fain to content himself with a sketch, after making which they pushed rapidly forward, and encamped for the night, still within sight and sound of the mighty fall.

“D’you know, Joe,” said Frank, leaning back against a tree stem, as he gazed meditatively into the fire after supper was concluded, “it has often struck me that men are very foolish for not taking full possession of the splendid world in which they have been placed.”

Frank paused a few moments, but the observation not being sufficiently definite for Joe, who was deep in the enjoyment of his first pipe, no reply was made beyond an interjectional “h’m.”

“Just look around you,” pursued Frank, waving his hand towards the landscape, “at this magnificent country; what timber, what soil, what an amount of game, what lakes, what rivers, what facilities for farming, manufacturing, fishing,—everything, in fact, that is calculated to gladden the heart of man.”

“Includin’ gold,” suggested Joe.

“Including gold,” assented Frank; and there it all lies—has lain since creation—hundreds of thousands of acres of splendid land *unoccupied*.

“Ha! there’s a screw loose somewhere,” said Joe, taking the pipe from his lips and looking at it earnestly, as if the remark were addressed to it, “somethin’ out o’ j’int—a plank started, so to speak—cer’nly.”

“No doubt of it,” said Frank; “and the broad acres which we now look upon, as well as those over which we have lately travelled, are as nothing compared with the other waste but fertile lands in America, on which hundreds of thousands of the human race might live happily. Yet, strange to say, men seem to prefer congregating together in little worlds of brick, stone, and mortar, living tier upon tier above each other’s heads, breathing noxious gases instead of the scent of flowers, treading upon mud, stone, and dust, instead of green grass, and dwelling under a sky of smoke instead of bright blue ether—and this, too, in the face of the Bible command to ‘go forth and replenish the earth.’”

“Yes, there’s great room,” said Joe, “for the settin’ up of a gin’ral enlightenment an’ universal emigration society, but I raither think it wouldn’t pay.”

“I know it wouldn’t, but why not?” demanded Frank.

“Ah, why not?” repeated Joe.

As neither of them appeared to be able to answer the question, they both remained for some time in a profound reverie, Frank gazing as he was wont to do into the fire, and Joe staring through smoke of his own creation at the vaquero, who reclined on the opposite side of the fire enjoying the tobacco to the full by letting it puff slowly out at his nose as well as his mouth.

“Joe,” said Frank.

“Ay, ay, sir,” answered Joe with nautical promptitude.

“I have been thinking a good deal about our affairs of late, and have come to the conclusion that the sooner we go home the better.”

“My notions pre-cisely.”

“Moreover,” continued Frank, “I think that we have come far enough in this direction, and that it would be a good plan to return to Bigbear

Gully by a different route from that by which we came here, and thus have an opportunity of seeing some of the other parts of the diggings. What say you to that?"

"I'm agreeable," answered Joe.

"Well then, shall we decide to commence our return journey to-morrow?"

"By all means. Down wi' the helm, 'bout ship an' lay our course on another tack by daylight," said Joe, shaking the ashes out of his pipe with the slow unwilling air of a man who knows that he has had enough but is loath to give up; "I always like to set sail by daylight. It makes one feel up to the mark so to speak, as if one had lost none of the day, and I suppose," he added with a sigh which resolved itself into a yawn, "that if we means to start so bright an' early the sooner we tumble in the better."

"True," said Frank, whose mouth irresistibly followed the example of Joe's, "I think it will be as well to turn in."

There was a quiet, easy-going lowness in the speech and motions of the two friends, which showed that they were just in a state of readiness to fall into the arms of the drowsy god. They rolled themselves in their blankets, placed their rifles by their sides, their heads on their saddles, and their feet to the fire.

Joe Graddy's breathing proclaimed that he had succumbed at once, but Frank lay for a considerable time winking owlshly at the stars, which returned him the compliment with interest by twinkling at him through the branches of the overhanging trees.

Early next morning they arose, remounted their mules and turned back, diverging, according to arrangement, from their former track, and making for a particular part of the diggings where Frank had been given to understand there were many subjects of interest for his pencil. We would fain linger by the way to describe much of what they saw, but the limits of our space require that we should hasten

onward, and transport the reader at once to a place named the Great Cañon, which, being a very singular locality, and peculiarly rich in gold, merits description.

It was a gloomy gap or gorge—a sort of gigantic split in the earth—lying between two parallel ranges of hills at a depth of several hundred feet, shaped like a wedge, and so narrow below that there was barely standing room. The gold all lay at the bottom, the slopes being too steep to afford it a resting-place.

The first diggers who went there were said to have gathered vast quantities of gold; and when Frank and Joe arrived there was quite enough to repay hard work liberally. The miners did not work in companies there. Indeed, the form of the chasm did not admit of operations on a large scale being carried on at any one place. Most of the men worked singly with the pan, and used large bowie-knives with which they picked gold from the crevices of the rocks in the bed of the stream, or scratched the gravelly soil from the roots of the overhanging trees, which were usually rich in deposits. The gorge, about four miles in extent, presented one continuous string of men in single file, all eagerly picking up gold, and admitting that in this work they were unusually successful.

But these poor fellows paid a heavy price for the precious metal in the loss of health, the air being very bad, as no refreshing breezes could reach them at the bottom of the gloomy defile.

The gold at that place was found both in very large and very small grains, and was mixed with quantities of fine black sand, which the miners blew off from it somewhat carelessly—most of them being “green hands,” and anxious to get at the gold as quickly as possible. This carelessness on their part was somewhat cleverly taken advantage of by a keen old fellow who chanced to enter the hut of a miner when Frank and Joe were there. He had a bag on his back and a humorous twinkle in his eye.

“Well, old foxey, what do *you* want?” asked the owner of the hut, who happened to be blowing off the sand from a heap of his gold at the

time.

“Sure it’s only a little sand I want,” said the man, in a brogue which betrayed his origin.

“Sand, Paddy, what for?”

“For emery, sure,” said the man, with a very rueful look; “troth it’s myself as is gittin’ too owld entirely for the diggin’s. I was a broth of a boy wance, but what wid dysentery and rheumatiz there’s little or nothin’ o’ me left, so I’m obleeged to contint myself wid gatherin’ the black sand, and sellin’ it as a substitute for emery.”

“Well, that is a queer dodge,” said the miner, with a laugh.

“True for ye, it *is* quare, but it’s what I’m redooiced to, so av you’ll be so kind as plaze to blow the sand on to this here tray, it’ll be doin’ a poor man a good turn, an’ costin’ ye nothin’.”

He held up a tin tray as he spoke, and the miner cheerfully blew the sand off his gold-dust on to it.

Thanking him with all the fervour peculiar to his race, the Irishman emptied the sand into his bag, and heaving a heavy sigh, left the hut to request a similar favour of other miners.

“You may depend on it,” said Frank, as the old man went out, “that fellow is humbugging you. It is gold, not sand, that he wants.”

“That’s a fact,” said Joe Graddy, with an emphatic nod and wink.

“Nonsense,” said the miner, “I don’t believe we lose more than a few specks in blowing off the sand—certainly nothing worth speaking of.”

The man was wrong in this, however, for it was afterwards discovered that the sly old fellow carried his black sand to his hut, and there, every night, by the agency of quicksilver, he extracted from the sand double the average of gold obtained by the hardest working miner in the Cañon!

At each end of this place there was a hut made of calico stretched on a frame of wood, in which were sold brandy and other strong liquors of the most abominable kind, at a charge of about two shillings for a small glass! Cards were also to be found there by those who wished to gamble away their hard-earned gains or double them. Places of iniquity these, which abounded everywhere throughout the diggings, and were the nightly resort of hundreds of diggers, and the scene of their wildest orgies on the Sabbath-day.

Leaving the Great Cañon, our travellers—we might almost term them inspectors—came to a creek one raw, wet morning, where a large number of miners were at work. Here they resolved to spend the day, and test the nature of the ground. Accordingly, the vaquero was directed to look after the mules while Frank and Joe went to work with pick, shovel, and pan.

They took the “dirt” from a steep incline considerably above the winter level of the stream, in a stratum of hard bluish clay, almost as hard as rock, with a slight surface-covering of earth. It yielded prodigiously. At night they found that they had washed out gold to the value of forty pounds sterling! The particles of gold were all large, many being the size of a grain of corn, with occasional nuggets intermixed, besides quartz amalgamations.

“If this had been my first experience o’ them there diggin’s,” said Joe Graddy, as he smoked his pipe that night in the chief gambling and drinking store of the place, “I would have said our fortin was made, all but. Hows’ever, I don’t forget that the last pair o’ boots I got cost me four pound, an’ the last glass o’ brandy two shillin’s—not to speak o’ death cuttin’ an’ carvin’ all round, an’ the rainy season a-comin’ on, so it’s my advice that we ’bout ship for home as soon as may be.”

“I agree with you, Joe,” said Frank, “and I really don’t think I would exchange the pleasure I have derived from journeying through this land, and sketching the scenery, for all the gold it contains. Nevertheless I would not like to be tempted with the offer of such an exchange!—Now, I’ll turn in.”

Next morning the rain continued to pour incessantly, and Frank Allfrey had given the order to get ready for a start, when a loud shouting near the hut in which they had slept induced them to run out. A band of men were hurrying toward the tavern with great haste and much gesticulation, dragging a man in the midst of them, who struggled and protested violently.

Frank saw at a glance that the prisoner was his former companion Bradling, and that one of the men who held him was the stranger who had been so badly wounded by him at the camp-fire, as formerly related.

On reaching the tavern, in front of which grew a large oak-tree—one of the limbs of which was much chafed as if by the sawing of a rope against it—the stranger, whose comrades called him Dick, stood up on a stump, and said—

“I tell you what it is, mates, I’m as sure that he did it as I am of my own existence. The man met his death at the hands of this murderer Bradling; ha! he knows his own name, you see! He is an escaped convict.”

“And what are you?” said Bradling, turning on him bitterly.

“That is no man’s business, so long as I hurt nobody,” cried Dick passionately. “I tell you,” he continued, addressing the crowd, which had quickly assembled, “I found this fellow skulking in the bush close to where the body was found, and I know he did it, because he all but murdered me not many months ago, and there,” he continued, with a look of surprise, pointing straight at our hero, “is a man who can swear to the truth of what I say!”

All eyes were at once turned on Frank, who stepped forward, and said—

“I can certainly testify to the fact that this man Bradling did attempt to shoot the man whom you call Dick, but I know nothing about the murder which seems to have been perpetrated here, and—”

“It’s a young feller as was a quiet harmless sort o’ critter,” said one of the bystanders, “who was found dead under a bush this morning with his skull smashed in; and it’s my opinion, gentlemen, that, since this stranger has sworn to the fact that Bradling tried to murder Dick, he should swing for it.”

“I protest, gentlemen,” said Frank energetically, “that I did not *swear* at all! I did not even say that Bradling tried to murder anybody: on the contrary, I think the way in which the man Dick handled his gun at the time when Bradling fired was very susp—”

A shout from the crowd drowned the remainder of this speech.

“String him up without more ado,” cried several voices.

Three men at once seized Bradling, and a rope was quickly flung over the bough of the oak.

“Mercy! mercy!” cried the unhappy man, “I swear that I did not murder the man. I have made my pile down at Bigbear Gully, and I’ll give it all—every cent—if you will wait to have the matter examined. Stay,” he added, seeing that they paid no heed to him, “let me speak one word, before I die, with Mr Allfrey. I want to tell him where my gold lies hid.”

“It’s a dodge,” cried one of the executioners with a sneer, “but have your say out. It’s the last you’ll have a chance to say here, so look sharp about it.”

Frank went forward to the man, who was trembling, and very pale, and begged those who held him to move off a few paces.

“Oh! Mr Allfrey,” said Bradling, “I am innocent of this; I *am* an escaped convict, it is true, and I *did* try to kill that man Dick, who has given me provocation enough, God knows, but, as He shall be my judge at last, I swear I did not commit *this* murder. If you will cut the cords that bind my hands, you will prevent a cold-blooded murder

being committed now. You saved my life once before. Oh! save it again.”

The man said all this in a hurried whisper, but there was something so intensely earnest and truthful in his bearing that Frank, under a sudden and irresistible impulse, which he could not afterwards account for, drew his knife and cut the cords that bound him.

Instantly Bradling bounded away like a hunted deer, overturning several men in his flight, and being followed by a perfect storm of bullets from rifles and revolvers, until he had disappeared in the neighbouring wood. Then the miners turned with fury on Frank, but paused abruptly on seeing that he and Joe Graddy stood back to back, with a revolver in each hand.

Of course revolvers and rifles were instantly pointed at them, but fortunately the miners in their exasperation had discharged all their fire-arms at Bradling—not a piece remained loaded!

Several therefore commenced hurriedly to re-load, but Frank shouted, in a voice that there was no misunderstanding—

“The first who attempts to load is a dead man!”

This caused them to hesitate, for in those times men, when desperate, were wont to be more prompt to act than to threaten. Still, there were some present who would have run the risk, and it is certain that our hero and his friend would have then and there terminated their career, had not a backwoods hunter stepped forward and said:

“Well now, ye air makin’ a pretty noise ’bout nothin’! See here, I know that feller Bradling well. *He* didn’t kill the man. It was a Redskin as did it; I came up in time to see him do it, and killed the Redskin afore he could get away. In proof whereof here is his gun, an’ you’ll find his carcase under the bank where the murder was committed, if ye’ve a mind to look for it. But Bradling *is* a murderer. I knows him of old, an’ so, although he’s innocent of this partikler murder, I didn’t see no

occasion to try to prevent him gittin' his desarts. It's another matter, hows'ever, when you're goin' to scrag the men as let him off. If ye'll take the advice of an old hunter as knows a thing or two, you'll go to work on yer claims slick off, for the rains are comin' on, and they will pull ye up sharp, I guess. You'll make hay while the sun shines if you're wise."

The opportune interference of this hunter saved Frank and Joe, who, after thanking their deliverer, were not slow to mount their mules and hasten back to Bigbear Gully, resolved more firmly than ever to wind up their affairs, and bid a final adieu to the diggings.

Chapter Nine.

Conclusion.

When they arrived at Bigbear Gully they found the condition of the people most deplorable, owing to scarcity of provisions, prevailing sickness, and the total absence of physic or medical attendance. To make matters worse, there were indications that the rainy season was about to set in; an event that would certainly increase the violence of the disease which had already swept away so many of the miners, not a few of whom fell down in the holes where they were digging for gold, and thus, in digging their own graves, ended their golden dreams, with gold-dust for their winding-sheets.

In California there may be said to be only two seasons—a wet one and a dry. The wet season is from November to March, during which period foggy weather and cold south-west winds prevail. During the remaining months of the year, arid scorching north-east winds blow so frequently and so long that everything green becomes parched and shrivelled up. Of course this state of things is modified in different localities by the proximity or absence of mountains, rivers, and sandy plains, and there are various periods throughout the year during which the climate is delightful; but on the whole it is considered bad—especially during the rains, when water comes

down in such continuous deluges that gold-digging and all other work is much interfered with—sometimes stopped altogether. At midday in this season there is frequently July heat, while in the morning and evening there is January cold.

Anxious to escape before the weather became worse, Frank went at once to Jeffson's store to obtain supplies, settle up accounts, and inquire for his friend Meyer. He found Jeffson looking very ill—he having recently had a severe attack of the prevailing complaint, but "Company" had recovered completely, and was very busy with the duties of his store, which ("Company" being a warm-hearted man) included gratuitous attendance on, and sympathy with, the sick.

"It'll ruin us intirely," he was wont to say, "for we can't stand by and see them die o' sickness an' intarvation mixed, an' the poor critters has nothin' wotever to pay. Hows'ever, vartue is its own reward, an' we makes the tough miners pay handsome for their supplies, which makes up for the sick wans, an' kapes us goin' on hearty enough."

"And what of Meyer?" asked Frank, somewhat anxiously.

Instead of answering, Jeffson put on his hat, and bidding him follow, went out of the store. He led him and Joe towards a large pine-tree, at the root of which there was a low mound, carefully covered with green turf. Pointing to it, the Yankee store-keeper said with some emotion—

"There he lies, poor fellow; and a better, more kind-hearted, or honester man, never drove pick and shovel into the airth."

In compliance with the request of Frank, who was deeply moved, Jeffson told how that, after the departure of his friends, the poor German's spirits sank; and while he was in this state, he was prevented from rallying by a severe attack of dysentery which ended in his death.

"I trust that he was not pressed by poverty at the last," said Frank.

“He would have been,” replied the Yankee, “if he had been allowed to have ’is own way; for, being unable to work, of course he ran out o’ gold-dust, and nothing would persuade him to touch the nugget you left in my charge. I hit upon a plan, however, which answered very well. I supplied him all through his illness with everything that he required to make him as comfortable as could be, poor fellow, tellin’ him it was paid for in full by a friend of his, whose name I couldn’t and wouldn’t mention. ‘Jeffson,’ says he, startin’ up like a livin’ skeleton, and lookin’ at me so serious with his hollow eyes; ‘Jeffson, if it bees *you* dat give me de tings, I vill not have dem. I vill die first. You is poor, an’ ve cannot expect you keep all de dyin’ miners vor noting.’

“‘Well,’ says I, ‘I won’t go for to say I’m over rich, for times *air* raither hard just now; but it ain’t *me* as is the friend. I assure you I’m paid for it in full, so you make your mind easy.’

“With that he lay down an’ gave a long sigh. He was exhausted, and seemed to have dismissed the subject from his mind, for he never spoke of it again.”

“I rather suspect,” said Frank, “that you did not tell him the exact truth.”

“I guess I did,” replied the Yankee.

“Who, then, was the friend?”

“Yourself,” said Jeffson, with a peculiar smile. “I intend to keep payment of it all off your nugget, for you see it *is* a fact that we ain’t in very flourishing circumstances at present; and I knew you would thank me for not deserting your friend in his distress.”

“You did quite right,” said Frank earnestly; “and I thank you with all my heart for your kindness to poor Meyer, as well as your correct estimate of me.”

Frank did not forget that his own resources were at a low ebb just then, and that he had been counting on the nugget for the payment of his expenses to the coast, and his passage to England, but he made no mention of the fact. His comrade, Joe Graddy, however, could not so easily swallow his disappointment in silence.

“Well,” said he, turning his quid from one cheek to the other—for Joe was guilty of the bad habit of chewing tobacco,—“well, it’s not for the likes o’ me to put my opinion contrairy to yourn, an’ in coorse it’s all very right that our poor messmate should have been looked arter, an’ I’m very glad he wos. Notwithstandin’, I’m bound for to say it *is* raither okard as it stands, for we’re pretty nigh cleaned out, an’ have got to make for the coast in the rainy season, w’ich, it appears to me, is very like settin’ sail in a heavy gale without ballast.”

“Come, Joe,” interposed Frank, “we’re not quite so hard up as that comes to. There is a little ballast left,—sufficient, if we only turn to, and wash out a little more gold, to take us home.”

“Sorry to hear you’re in such a fix,” said Jeffson, still regarding his friends with a peculiar smile on his cadaverous countenance; “but I think I can get ye out of it. See here,” he added, leading them to another grave not far distant from that of Meyer; “can you guess who lies under the sod there? He was a friend of yours; though perhaps you would scarcely have acknowledged him had he been alive. You remember Bradling—”

“What! our old travelling companion!” exclaimed Frank.

“The same.”

“Why, I saved his life only a few days ago.”

“I know it,” said Jeffson, “He came here late one night, all covered with blood; and, flinging himself down on a bench in my store, said that he was done for. And so he was, I guess,—all riddled with bullets, none of which, however, had given him a mortal wound; but he had lost so much blood by the way that he had no chance of

recovering. I did my best for him, poor fellow, but he sank rapidly. Before he died he told me how you had saved him from being scragged, and said that he wanted to make you his heir."

"Poor fellow," said Frank with a sad smile, "it was a kind expression of gratitude that I did not expect of him, considering his reputation."

"I s'pose," said Joe Graddy, with a sarcastic laugh, "that you'll be goin' to set up your carriage an' four, an' make me your coachman, mayhap?"

"I think I may promise that with safety," replied Frank.

"Indeed you may," said Jeffson, "for Bradling has been one of the most successful diggers in Bigbear Gully since you left it, and has made his fortune twice over. The value of gold-dust and nuggets left by him in my charge for you is about ninety-six thousand dollars, which, I believe, is nigh twenty thousands pounds sterling of your money."

"Gammon!" exclaimed Joe.

"You are jesting," said Frank.

"That I am not, as you shall see, if you will come with me to the store. When he felt sure that he was dying, Bradling asked me to call together a few of the honest and trustworthy men in the diggings. I did so, and he told us the amount of his gatherings, and, after explaining how you had helped him in his hour of need, said that he took us all solemnly to witness that he left you his heir. He got one of the miners to write out a will for him and signed it, after which he directed us to a tree, under which, he said, his gold was hid. We thought at first that he was raving, but after he was dead we went to the tree, and there, sure enough, we found the gold, just as he had described it, and, on weighing it, found that it amounted to the sum I have named—so, Mr Alfrey, I guess that I may congratulate you on your good fortune. But come, I will show you the will and the witnesses."

Saying this he led them into the store, where he showed the will to Frank and Joe, who were at first sceptical, and afterwards began to doubt the evidence of their senses. But when the witnesses were called, and had confirmed Jeffson's statements, and, above all, when the bags of gold-dust and nuggets were handed over to him, Frank could no longer question the amazing fact that he had suddenly come into possession of a comfortable fortune!

Need we say, reader, that he insisted on sharing it with Joe Graddy, without whose prompt and vigorous aid the rescue of Bradling could not have been effected? and need we add that the two friends found their way to the sea-coast as quickly as possible, and set sail for England without delay? We think not. But it may be as well to state that, on his arrival in England, Frank found his old uncle in a very sour condition of mind indeed, having become more bilious and irascible than ever over his cash-books and ledgers,—his own special diggings—without having added materially to his gold.

When Frank made his appearance, the old gentleman was very angry, supposing that he had returned to be a burden and a bore to him, but, on learning the true state of the case, his feelings towards his *successful* nephew were wonderfully modified and mollified!

It was very difficult at first to convince him of the truth of Frank's good fortune, and he required the most incontestable proofs thereof before he would believe. At length, however, he was convinced, and condescended to offer his nephew his hearty congratulations.

"Now, uncle," said Frank, "I shall build a house somewhere hereabouts, and live beside you."

"You could not do better," said the old gentleman, who became suddenly and wonderfully amiable!

"And I don't intend to bother myself with business, uncle."

"Quite right, my boy; you have no occasion to do so."

“But I intend to devote much of my time to painting.”

“A most interesting occupation,” said the tractable old gentleman.

“And a good deal of it, also,” continued Frank, “to the consideration of the cases of persons in sickness and poverty.”

“H’m! a most laudable purpose, though it has always appeared to me that this is a duty which devolves upon the guardians of the poor. Nevertheless the intention is creditable to you; but I am surprised to hear you, who are so young, and can have seen so little of poverty or sickness, talk of giving much of your time to such work.”

“You are wrong, uncle, in supposing that I have seen little. During my wanderings in foreign lands I have seen much, very much, of poverty and sickness, and have felt something of both, as my friend Joe Graddy can testify.”

Joe, who was sitting by, and had been listening to the conversation with much interest, bore testimony forthwith, by stoutly asserting that “that was a fact,” and slapping his thigh with great vehemence, by way of giving emphasis to the assertion.

“The fact is, sir,” continued Joe, kindling with enthusiasm, “that your nephy has gone through a deal o’ rough work since he left home, an’ I’m free for to say has learned, with myself, a lot o’ walooable lessons. He has made his fortin at the gold-mines, kooriously enough, without diggin’ for it, an’ has come for to know that it’s sometimes possible to pay too high a price for that same metal, as is proved by many an’ many a lonely grave in the wilds of Californy. Your nephy an’ me, sir, has comed to the conclusion that distributin’ gold is better than diggin’ for it, so we intends to set up in that line, an’ hopes that your honour will go into pardnership along with us.”

Mr Alfrey, senior, received Joe’s invitation with a benignant and patronising smile, but he did not accept it, neither did he give him any encouragement to suppose that he sympathised with his views on that subject. There is reason to believe, however, that his

opinions on this head were somewhat modified in after years. If report speaks truly, he came to admit the force of that text in Scripture which says, that as it is certain man brings nothing into the world, so he takes nothing out of it, and that therefore it was the wisest policy to do as much good with his gold as he could while he possessed it.

Acting on these convictions, it is said, he joined the firm of Allfrey and Graddy, and, making over his cash-books and ledgers to the “rising generation,” fairly and finally, like his new partners, renounced his ancient habit of digging for gold.

The End.

| [Chapter 1](#) || [Chapter 2](#) || [Chapter 3](#) || [Chapter 4](#) || [Chapter 5](#) || [Chapter 6](#) || [Chapter 7](#) || [Chapter 8](#) || [Chapter 9](#) |

*** END OF THE PROJECT GUTENBERG EBOOK DIGGING FOR
GOLD: ADVENTURES IN CALIFORNIA ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with

almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form,

including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.

- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE

FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any

volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg

Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.